

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE AFFIRMATIVE ACTION STATEMENT	NUMBER 2.17
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 12-10-86, 12-10-97, 8-18-04, 8-17-11

Arkansas Northeastern College is committed to provide equal opportunity through its employment practices, educational programs, and the many services it offers to the community.

The College will make all personnel decisions without regard to race, color, religion, sex, age, national origin, or disability or qualified handicapped.

The College will offer programs within the limitation of available resources that will foster educational opportunities without regard to race, color, religion, sex, age, national origin, or disability or qualified handicapped.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 1 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

It is the policy of the Arkansas Northeastern College ("College") to prohibit sexual harassment and acts of sexual assault, dating violence, domestic violence, and stalking committed against students, employees, visitors to the campus, and other persons engaged in or seeking to participate in an educational program or activity.

Scope

Educational program or activity includes locations, events, or circumstances over which the school exercises substantial control.

Definitions

The following list identifies terms regarding sexual discrimination.

- **Consent:** If there is any use of intimidation, threats, coercion, or physical force then there is no consent. If a person cannot understand the sexual situation due to an impairment, there is no consent; this includes impairment or incapacitation due to drugs or alcohol. When a person is incapable of giving consent due to the person's status as a minor, there is no consent. When force is used there is no consent. Silence does not establish consent.
****Consent to sexual activities in the past does not imply future consent in any way.**
- **Coercion:** Coercive behavior is any pressure applied in a sexual situation where someone has made it clear that they do not want to participate in any sexual activity.
- **Force:** The use of physical violence to obtain or engage in sexual activities with another person. Force also includes explicit threats, implied threats, intimidation, and coercion that overcome resistance or produce consent. Under Arkansas law, the age of consent varies with the degrees of assault, the age of the actor, and the relationship of the actor to the other party. For specific information, please refer to the relevant Arkansas Statutes.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 2 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

- **Dating Violence:** (as defined in the Violence Against Women Act (VAWA) amendments to the Clery Act) Any violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the alleged victim; and (B) where the existence of such a relationship shall be determined based on a consideration of the following factors: (i) length of the relationship; (ii) type of relationship, (iii) frequency of interaction between the persons involved in the relationship. This includes any physical violence, sexual exploitation, sexual harassment, or sexual assault.
- **Domestic Violence:** (as defined in the VAWA amendments to the Clery Act) Any physical harm, bodily injury, assault, or the infliction of fear of imminent physical harm, bodily injury, or assault between family or household members; or any sexual conduct between family or household members, whether minors or adults, that constitutes a crime under the laws of the state of Arkansas. Family or household members means spouses, former spouses, parents and children, any children residing in the household, persons who presently or in the past have resided or cohabited together, persons who have or have had a child in common, and persons who are presently or in the past have been in a dating relationship together. (See also, Arkansas Code Annotated § 9-15-103 – “Domestic Abuse.”)
- **Hostile Environment:** Unwelcome gender-based verbal or physical conduct which is so severe, pervasive, and objectionable offensive that it has the effect of unreasonable interfering with an individual’s education or employment performance or creating an intimidating, hostile, or offensive educational or employment environment.
- **Sexual Assault:** (as defined in the Clery Act) Sexual contact or attempted sexual contact with another person without that person’s consent. Sexual assault includes, but is not limited to any sexual contact where the victim is not able to give or otherwise does not give consent; intentional touching of another person’s clothed or unclothed body parts without consent, for the purpose of sexual degradation, sexual gratification, or sexual humiliation. Offenses include rape, criminal sexual conduct, incest, and/or statutory rape.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 3 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

- ***Sexual Harassment:*** Sexual harassment means conduct on the basis of sex that satisfies one or more of the following: (i) Submission to or toleration of such conduct is used as a term of instruction, employment or participation in the school's activities, or submission to or rejection of such conduct is used as the basis for employment or educational decisions affecting the individual; or (ii) Unwelcome conduct that a reasonable person would determine is so severe, pervasive, and objectively offensive that it effectively denies a person equal access to or unreasonably interferes with the person's participating in the person's education or employment performance or activity; or (iii) Sexual assault (as defined in the Clery Act), dating violence, domestic violence, or stalking as defined in the Violence Against Women Act (VAWA).
- ***Stalking:*** *(as defined in the VAWA amendments to the Clery Act)* Stalking means engaging in a course of conduct directed at a specific person, regardless of one's relationship with that person, which would cause a reasonable person to:
 1. Fear for a person's safety or the safety of another person
 2. And/or suffer substantial emotional distress
- ***Quid quo pro:*** *an employee conditioning educational benefits on participation on unwelcome sexual conduct.*

Note that conduct that does not meet one or more of these criteria may still be prohibited under the Student Conduct Policy Rule 6.31.

Reporting Process

Arkansas Northeastern College has designated a Title IX Coordinator with overall responsibility for oversight of the College's compliance with its obligations under Title IX, including, but not limited to, its obligations to investigate and respond to allegations of sexual discrimination.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 4 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

Any student, faculty member, staff member, administrator, or visitor to the campus who has experienced or witnessed sexual harassment, sexual assault, dating violence, domestic violence, or stalking should report the incident immediately to the Arkansas Northeastern College Title IX Coordinator or to a Deputy Title IX Coordinator.

Arkansas Northeastern College has designated the following faculty and staff members as “Mandatory Reporters.” As such, these people are required to report complaints to the Title IX Coordinator or to a Deputy Title IX Coordinator.

- Any employee who has been given the duty of reporting incidents of sexual violence or any other misconduct by students to the Title IX Coordinator or
- Any employee who a student could reasonably believe has this authority or duty

Upon receiving a report of a possible Title IX violation, the College’s Title IX Coordinator (and/or his or her designee) will first conduct an intake meeting with the complainant. During the complainant intake meeting, the Title IX Coordinator (and/or his or her designee) will gather information and discuss, among other things, confidentiality standards and possible supportive measures that could be provided during the pendency of the complaint proceeding, such as changes in academic classes and/or No Contact Orders. During the intake meeting, the Title IX Coordinator (and/or his or her designee) will also make referrals, as appropriate, to law enforcement, advocacy, counseling, medical, academic and/or other available resources.

If during the complainant intake process, the complainant states a desire to file a formal complaint, or if the Title IX Coordinator determines (based on the information gathered) that additional steps should be taken in the interest of providing a safe and non-discriminatory environment for all, the Title IX Coordinator will issue and sign a formal complaint. The formal complaint will be incorporated into a Notice of Allegations, which will be remitted, in writing, simultaneously to both parties.

In order to file a formal complaint, the complainant must be “participating in or attempting to participate in” the recipient’s education program or activity at the time the formal complaint is filed. The phrase “educational program or activity” includes “all the operations of “an

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 5 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

institution (i.e. “locations, events, or circumstances”) over which the institution exercised substantial control over both the respondent and the context in which the harassment occurs.”

The Title IX Coordinator (and/or his or her designee) will next conduct an intake meeting with the respondent.

Both the complainant and the respondent may be accompanied by one advisor/support person to assist them through the intake process. The advisor/support person may not speak on behalf of the student throughout the investigatory proceeding. The Title IX Coordinator (and/or his or her designee) will investigate the allegations in a prompt, thorough, and unbiased manner, considering all inculpatory and exculpatory evidence to the allegations which is obtained by the Title IX Coordinator, or provided by the parties or any witness.

Both parties have an equal opportunity to inspect and review:

- Any evidence obtained as part of the investigation that is directly related to the allegations raised in a formal complaint
- Evidence upon which the college does not intend to rely in reaching a determination regarding responsibility
- All evidence that parties want to be considered must be provided to the Title IX Coordinator before the first inspection period begins. Any additional evidence offered by either party will not be admissible.

First Inspection Period: At the end of the investigation, but before a report is drafted, the parties have 10 days to review all of the evidence collected during the investigation. The parties must be able to review the evidence the Title IX Coordinator is going to use as well as the evidence he/she is not going to use in drafting the investigative report. In that 10-day review period, both parties have equal opportunity to review and respond in writing to the

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 6 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

evidence. The Title IX Coordinator will “consider” the responses before completing the investigative report.

Second Inspection Period: After the final investigative report is written, but before the hearing where the determination of a possible violation of the Title IX policy will be made, the parties can review the final investigative report. This report does not have a determination. It just outlines the investigation. In that 10-day review period, both parties have equal opportunity to review and respond in writing to the evidence.

Based on relevant information garnered through the victim intake process, Title IX Coordinator or his/her designee will make an initial assessment regarding whether a potential Title IX violation has occurred. If the Title IX Coordinator determines that a potential Title IX violation has occurred, the matter will be referred to the Decision Maker(s).

Standards of Evidence

The standard of evidence threshold is the clear and convincing evidence standard. The College will apply the same standard of evidence for all formal complaints of sexual harassment whether the respondent is a student or an employee.

Hearing Process

The Decision Maker(s) will conduct a live hearing during which it will interview and question the Complainant, the Respondent, and any witnesses whose testimony the Committee deems relevant.

If a party does not have an advisor present at the live hearing, the College must provide without fee or charge to that party, an advisor of the schools’ choice, who may be, but is not required to be, an attorney, to conduct cross-examination on behalf of that party.

Appeals

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TITLE IX SEXUAL HARASSMENT POLICY	NUMBER 2.19
LEGAL REFERENCE Title VII of the Civil Rights Act of 1964 ad Title IX of the Education Amendments of 1972	PAGE 7 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 8-12-87, 12-10-92, 8-18-04, 8-17-11, 10-21-20, 10-16-24, 10-15-25

Procedure for Appeals: Both the complainant and the respondent may appeal from (1) the Title IX Coordinator's dismissal of a formal complaint or any allegations therein or (2) the Hearing Officer's determination. The appeal should be submitted in writing to the Title IX Coordinator within ten (10) days of a receipt of the Hearing Officer's decision. The Title IX Coordinator will forward the appeal to the Appeal Panel. The appeal will be decided based on the written record and without deference to the decision of the Hearing Officer.

Responses: Within five (5) days of receipt of the appeal, the other party may submit a written statement in response to the appeal and which supports or challenges the dismissal or determination. The response should be submitted to the Title IX Coordinator, who shall provide a copy to the decision-maker and the appealing party.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE DRUG-FREE WORKPLACE	NUMBER 2.21
LEGAL REFERENCE U.S. DRUG-FREE WORKPLACE ACT OF 1988	PAGE 1 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 6-14-89, 8-12-92, 12-10-97, 8-18-04, 8-17-11

Arkansas Northeastern College is committed to maintaining a drug-free workplace in accordance with the requirements of the U.S. Drug-Free Workplace Act of 1988, Appendix C to 45 CFR 620, Subpart F-Certification Regarding Drug-Free Workplace Requirements.

Upon hiring, each new employee will be given a copy of the Drug-Free Workplace Policy Statement.

Certification

The grantee certifies that it will provide a drug-free workplace by:

- I. Publishing a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the grantee's workplace and specifying the actions that will be taken against employees for violation of such prohibition.
- II. Establishing a drug-free awareness program to inform employees about:
 - A. The dangers of drug abuse in the workplace
 - B. The grantee's policy of maintaining a drug-free workplace
 - C. Any available drug counseling, rehabilitation, and employee assistance programs; and
 - D. The penalties that may be imposed upon employees for drug abuse violations occurring in the workplace
- III. Making it a requirement that each employee to be engaged in the performance of the grant be given a copy of the statement required by paragraph (a);
- IV. Notifying the employee in the statement required by paragraph (a) that, as a condition of employment under the grant, the employee will:
 - A. Abide by the terms of the statement; and
 - B. Notify the employer of any criminal drug statute conviction for a violation occurring in the workplace no later than five days after each conviction
- V. Notifying the agency within ten days after receiving notice under subparagraph (d)(2) from an employee or otherwise receiving actual notice of such conviction

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE DRUG-FREE WORKPLACE	NUMBER 2.21
LEGAL REFERENCE U.S. DRUG-FREE WORKPLACE ACT OF 1988	PAGE 2 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 6-14-89, 8-12-92, 12-10-97, 8-18-04, 8-17-11

- VI. Taking one of the following actions, within 30 days of receiving notice under subparagraph 4(b), with respect to any employee who is so convicted
 - A. Taking appropriate personnel action against such an employee, up to and including termination; or
 - B. Requiring such employee to participate satisfactorily in a drug abuse assistance or rehabilitation program approved for such purposes by a Federal, State, or local health law enforcement, or other appropriate agency
- VII. Making a good faith effort to continue to maintain a drug-free workplace through implementation of paragraphs 1, 2, 3, 4, 5, and 6.

Policy Statement

Drug abuse and use at the workplace are subjects of immediate concern in our society. These problems are extremely complex and ones for which there are no easy solutions. From a safety perspective, the users of drugs may impair the well-being of all employees, the public at large, and result in damage to state property. Therefore, it is the policy of Arkansas Northeastern College that the unlawful manufacture, distribution, dispensation, possession, or use of a controlled substance in a state agency's workplace is prohibited. Any employees violating this policy will be subject to discipline up to and including termination.

The specifics of this policy are as follows:

- I. Arkansas Northeastern College will not differentiate between drug users and drug pushers or sellers. Any employee who gives or in any way transfers a controlled substance to another person or sells or manufactures a controlled substance while on the job or on agency premises will be subject to discipline up to and including termination.
- II. The term "controlled substance" means any drug listed in 21 U.S.C. Section 812 and other federal regulations. Generally, these are drugs which have a high potential for abuse. Such drugs include, but are not limited to; Heroin, Marijuana, Cocaine, PCP, and "Crack." They also include "legal drugs" which are not prescribed by a licensed physician.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE DRUG-FREE WORKPLACE	NUMBER 2.21
LEGAL REFERENCE U.S. DRUG-FREE WORKPLACE ACT OF 1988	PAGE 3 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 6-14-89, 8-12-92, 12-10-97, 8-18-04, 8-17-11

- III. Each employee is required by law to inform the College within five (5) days after he or she is convicted of any federal or state criminal drug statute where such violation occurred on the College's premises. A conviction means a finding of guilt (including a plea of nolo contendere) or the imposition of a sentence by a judge or jury in any federal court, state court, or other court of competent jurisdiction.
- IV. Arkansas Northeastern College will notify any U.S. government agency with which a contract has been made within ten days after receiving notice from the employee or otherwise receives actual notice of such a conviction.
- V. If an employee is convicted of violating any criminal drug statute while in the workplace, he or she will be subject to discipline up to and including termination. Alternatively, the College may require the employee to successfully finish a drug abuse program sponsored by an approved private or governmental institution and at no cost to the College.
- VI. As a condition of further employment on any federal government contract, the law requires all employees to abide by this policy.
- VII. The College establishes through the Chief Human Resources Officer a drug-free awareness program to inform employees about:
 - A. The dangers of drug abuse in the workplace
 - B. The College's policy of maintaining a drug-free workplace
 - C. Any available drug counseling, rehabilitation, and employee assistance program
 - D. The penalties that may be imposed upon employees for drug abuse violations occurring in the workplace

The above is applicable to all College facilities and sites, permanent or temporary, on or off its main campus in Blytheville and including College or authorized vehicles when participating in transition to or from facilities or sites.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CAMPUS NOTIFICATION OF SEX OFFENDERS	NUMBER 2.23
LEGAL REFERENCE Campus Sex Crimes Prevention Act (Section 1601) {(42 U.S.C., 14071j and 20 U.S.C., 1092 (f) (1) (1))}	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-16-08, 8-17-11

Under the provisions of the Family Educational Rights and Privacy Act, as amended by the Campus Sex Crimes Prevention Act, Arkansas Northeastern College will disclose information concerning Registered Sex Offenders.

The Campus Sex Crimes Prevention Act (section 16010 {(42 U.S.C., 14071j and 20 U.S.C., 1092 (f) (1) (1)}) is a federal law enacted on October 28, 2000. This law is intended to monitor the enrollment and/or employment status of convicted sex offenders at higher education institutions. The purpose of this reporting is to ensure that members of the campus community have information available concerning the presence of registered Sex Offenders.

Any person who is required to register as a sex offender in Arkansas shall provide notice as required under state law. The offender is required to report such information concerning Registered Sex Offender's enrollment or employment and to make this information available promptly to the local law enforcement.

Upon receipt of notification, the law enforcement will notify the Director of Public Safety if the registered offender is an employee or if the registered offender is a student. The Director of Public Safety and the appropriate vice president will contact the employee/student to clarify his/her status and to advise him/her of applicable College policy and procedure.

Procedures

- Registered Sex Offenders are not barred from employment or enrollment with Arkansas Northeastern College. Limitations and restrictions on employment must be both reasonable, job related, and directly related to areas of potential risk.
- Registered Sex Offenders classified as level three and level four will be posted on the website of the College upon confirmed notice.
- All Registered Sex Offenders are required to self-report their status to the local law enforcement upon employment or enrollment. If designated as Registered Sex Offender, after employment or enrollment, the self-reporting must occur within one working day of the designation. Failure to self-report may result in disciplinary action up to and including termination of employment or expulsion.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CAMPUS NOTIFICATION OF SEX OFFENDERS	NUMBER 2.23
LEGAL REFERENCE Campus Sex Crimes Prevention Act (Section 1601) {(42 U.S.C., 14071j and 20 U.S.C., 1092 (f) (1) (1))}	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-16-08, 8-17-11

- Registered/Convicted Sex Offenders are prohibited from working in or being upon the premises without authority of any area of the College that is designated to provide service/care to children. This prohibition includes, but is not limited to, Continuing Education Courses, Educational Talent Search programs, and the NIBCO Childcare Center. Other locations and/or events may be added at the discretion of College administration.
- Supervisors of Registered Sex Offenders should not assign the employee to an area from which they are prohibited if other employees are available to complete the assignment. If the assignment of the sex offender is essential, his/her immediate supervisor must escort him/her for the entire time that he/she is working in the prohibited location.

Students who fail to register as a sex offender with the local law enforcement department when required to so do by law will be subject to immediate arrest and expulsion.

The Campus Sex Crimes Prevention Act also requires that higher education institutions issue a statement advising the campus community of the availability of this information. Arkansas Code Annotated 12-12-913 (b) provides that local law enforcement agencies having jurisdiction shall disclose, in accordance with guidelines promulgated by the Arkansas Sex Offenders Assessment Committee, relevant and necessary information regarding offenders to the public when the disclosure is relevant and necessary for public protection.

A written summary of campus guidelines and the notification plan for each offender will be maintained in the office of the Director of Public Safety. Determinations regarding notifications will be made by the local law enforcement, in consultation with Arkansas Northeastern College Administration and other campus officials when necessary. Determinations regarding notifications shall be guided by the offender's risk assessment level in accordance with guidelines established by the Arkansas Sex Offenders Assessment Committee.

The Sex Offender Registry in Arkansas can be obtained by checking the Arkansas Crime Information Center website at <http://www.acic.org/Registration/index.htm>

ARKANSAS NORTHEASTERN COLLEGE**RULE**

TITLE MISSION AND PHILOSOPHY	NUMBER 3.1
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 4-14-82, 12-10-97, 8-18-04, 8- 17-11, 10-19-22

Mission: Arkansas Northeastern College is committed to providing accessible, quality educational programs, services, and lifelong learning opportunities.

Philosophy

Because Arkansas Northeastern College is committed to the ideal of the worth and dignity of individuals, its philosophy is to provide opportunities to youth and adults for development of purposeful, gratifying, and useful lives in a democratic society. These opportunities are provided through programs of study designed to fit the needs of students of varying educational and career goals and those which provide co-curricular activities and community services consistent with the concept of the community college.

Operating in the larger context of local, state, regional, and national higher educational patterns, the College seeks to respond to the needs of individuals and their levels of ability and development.

Arkansas Northeastern College is committed to these purposes:

- To provide an access to quality higher education opportunity for all individuals regardless of age, sex, race, or ancestry; economic, cultural or physical condition or previous educational attainment, within the provisions of law and resources available.
- To provide programs of study for students who wish to transfer to other institutions to pursue a baccalaureate degree.
- To provide career and technical programs and curricula leading to immediate employment and to offer programs for students who wish to upgrade their skills for current or future employment.
- To offer programs in general education and facilitate access to baccalaureate and masters programs.
- To offer credit/noncredit courses which meet community needs.
- To offer developmental programs to improve basic skills.
- To offer academic and career counseling and support services.
- To promote civic and cultural activities and provide for the avocational needs of students and the service community.
- To provide a positive and constructive experience for new students enhancing their educational growth, aspirations, and abilities to continue their education at this institution and beyond.

**ARKANSAS NORTHEASTERN COLLEGE
RULE**

TITLE COPYRIGHT COMPLIANCE POLICY	NUMBER 3.25
LEGAL REFERENCE Title 17 U.S.C. Section 101 et seq	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-17-07, 8-17-11

It is the intent of Arkansas Northeastern College that all members of the College community adhere to the provisions of the United States Copyright Law (Title 17, United States Cod, Sect. 101, et seq.).

All members of the College community are encouraged to educate themselves on the laws concerning copyright. Members of the College community who violate copyright laws do so at their own risk and assume all liability.

General Information

Copyright is legal protection for authors of original works to the five rights: reproduction, distribution, derivative works, public performance, and public display. Although the copyright owner retains these rights, the rights are subject to "Fair Use" limitations.

Section 107 of the Copyright Act of 1976 addresses the doctrine of fair use. There are four factors to consider when applying fair use guidelines to the use of copyrighted material:

1. The purpose and character of the use
2. The nature of the copyrighted work
3. The amount of the work used in relation to the copyrighted work as a whole
4. The effect of the use on the potential market of the copyrighted work

Revisions to Section 110 of the Copyright Act of 1976 address additional rights for distance learning classes, commonly referred to as the TEACH Act of 2002. Under the TEACH Act, works used under the supervision of an instructor directly relating to a regularly taught class and limited through technology to the students in the class may be allowed providing the institution has policies and information concerning copyright available, has reasonably prevented students from keeping works and redistributing them after the class session, and has not interfered with any technological controls placed on the work by the copyright owner.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ADMINISTRATIVE: INSTRUCTION	NUMBER 4.1
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 12-10-97, 8-18-04, 8-17-11, 12-14-22

I. Full-time Instructors

The primary responsibility of the faculty member is to provide quality instruction. The issuance of a full-time contract includes the expectation that the contract holder enjoys further professional responsibilities to the College. These responsibilities include, but are not limited to, committee assignment and participation, academic advisement of students, assessment of student learning, curriculum review and revision, student life and activity involvement, and community participation as representative of the College and its academic and professional community.

Each faculty member reports to a respective Dean/Chairperson/Director/Coordinator and shall perform duties assigned, including those assigned by the Chief Academic Officer or the President.

II. Part-time Instructors

Part-time faculty have the same academic responsibility for quality instruction as do the full-time faculty. Part-time faculty are also responsible for assessment of student learning in the courses they teach and may help with curriculum review and revision.

Part-time faculty development activities are scheduled by each instructional division during the academic year.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE NONCLASSIFIED EMPLOYEES	NUMBER 4.2
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-21-91, 6-11-97, 12-10-97, 8-18-04, 8-17-11

I. Administrative

Administrative employees, as recognized by the legislative act authorizing operational funds for any biennium of the State, are salaried within the line-item constraints for each approved position as set forth in the applicable Appropriations Act. Employees who are provisional, or permanent, and paid from granted funds (external and not contained within the Appropriations Act) shall receive salaries which are comparable to (or less than) similar permanent positions at the College which are identified by the Act. No granted position of a provisional nature will receive compensation greater than that of existing, equivalent, and permanent nonclassified positions.

II. Faculty

Grant-supported faculty positions, or equivalent, shall be compensated according to the same placement and salary guidelines applicable to permanent, non-grant, faculty positions.

III. Faculty, Workforce and Industry Training

Workforce and Industry Training faculty positions are a unique variation on traditional faculty positions, which includes a 40 hour work week and a minimum expectation of revenue generated to offset salary and fringe. Incentive pay opportunities are available to this class of employees in lieu of part-time/overload pay.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ADVISING/ORIENTATION	NUMBER 4.3
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-15-81, 12-10-97, 8-18-04, 8-17-11

The faculty are responsible for the academic advising of students, particularly those majoring in the instructor's discipline.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE SYLLABI AND FIRST DAY HANDOUT	NUMBER 4.5
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11, 4-19-23

I. Course Syllabi

A course syllabus for each course must be on file in the office of the Chief Academic Officer and with the appropriate Dean/Chairperson/Director/Coordinator. The course syllabus is to be used as the common syllabus by full and part-time instructors who teach a given course. Minimum requirements for the course syllabus will be approved by the Chief Academic Officer and published annually in the Academic Staff Handbook. Each instructor will present the course syllabus to students during the first week of class and upload it to the course shell on the learning management system.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE COMPENSATION AND BENEFITS	NUMBER 4.7
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 8-21-91, 5-23-95, 12-10-97, 8-18-04, 8-17-11

I. Salary

A. Full-time

Full-time faculty are initially employed in accordance with the Board of Trustees' policy for salary placement at the time of contract recommendation. Previous employment credit may be granted for instructional educational experience, or equivalent to a maximum of six levels beyond entry (no experience). Instructional experience may be negotiated on a one year for one year (or equivalent) basis for full-time college-level (community college preferred) teaching and/or one year for two years of teaching (or equivalent at other than college-level or at less than full-time college-level teaching.) Occupational experience may count as two years for one placement level or three years for one placement level, depending upon the perceived relevancy of the experience. Certain individual (special cases) exceptions to placement guidelines may be made by the President, consistent with authorization granted by the General Assembly and sanctioned by the Department of Higher Education.

The Chief Academic Officer must be notified in writing of any change (or pending change) in basic placement rank which may impact the next year's contract which results from additional graduate preparation. Change in rank status will only be granted for additional graduate preparation in the employee's teaching field (courses for which he/she was initially employed to teach) or in a field in which additional preparation was requested by the College. The written request must be made prior to the next contract year following the completion of graduate studies, and any change in rank status granted will become effective the contract year following such notification of request.

B. Part-time

Part-time faculty are paid at the approved overload rate.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE COMPENSATION AND BENEFITS	NUMBER 4.7
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 8-21-91, 5-23-95, 12-10-97, 8-18-04, 8-17-11

II. Payroll Deductions and Salary Payments

Faculty members are paid their academic year salary in 24 semi-monthly installments. The first check is paid in August. Paychecks will be distributed to all staff members on the 15th of the month or the last working day prior to the 15th and the last working day of each month. The following deductions will be made from each paycheck: FICA, Retirement, Federal Income Tax, and State Income Tax. In addition, other approved College deductions may be made.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 1 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

General Information

Act 169 of 1991 allows Arkansas Northeastern College to establish a Catastrophic Leave Bank Program for its support staff employees.

Act 441 of 1993 allows Arkansas Northeastern College to expand its current program to include non-faculty, nonclassified employees.

Act 1176 of 1999 allows Arkansas Northeastern College to expand its current program to include qualified family members.

Act 182 of 2017 allows paid maternity leave through Arkansas Northeastern College's catastrophic leave bank program.

The Catastrophic Leave Bank is administered by the Human Resources Office. The Chief Human Resources Officer serves as Chairman of the Catastrophic Leave Committee.

Definition of Terms

Catastrophic Illness means a medical condition of an employee or the spouse or parent of the employee or of a child of the employee which may be claimed as a dependent under Arkansas Income Tax Act of 1929, as certified by a licensed healthcare provider within the area of specialty related to the medical condition which requires an employee's absence from duty for a prolonged period of time and which results in a substantial loss of income to the employee because of the exhaustion of all earned sick, annual, holiday, and compensatory leave time.

Catastrophic Leave means paid leave which is transferred to a leave recipient from the College's Catastrophic Leave Bank. While a leave recipient is on Catastrophic Leave, he or she will receive normal benefits such as College contributions to insurance and retirement.

Catastrophic Leave for Maternity Purposes means an eligible female employee may receive up to (4) consecutive weeks of paid leave after the birth of the employee's biological child or placement of an adoptive child in the employee's home.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 2 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

Catastrophic Leave Bank means a pool of accrued annual and sick leave voluntarily donated by employees which may be approved by the College for use by other employees.

Catastrophic Leave Bank Program means a program approved by the Department of Finance and Administration and operated by the Human Resources Office to provide for the orderly authorization and administration of Catastrophic Leave.

Catastrophic Leave Committee means a committee comprised of eight members who represent a relative demographic cross section of the College's work force and who review applications from employees for Catastrophic Leave and make recommendations to the Administrative Affairs Committee relating to such leave.

Employee means a person who is regularly appointed or employed in a position of service by the College who is compensated on a full-time basis. [A person who works less than full-time (40 hours per week) is excluded from this definition and as such, is not eligible to participate as a donor or recipient in the Catastrophic Leave Banks Program.]

Leave Donor means an employee whose voluntary written request to donate accrued annual or sick leave to the Arkansas Northeastern College's Catastrophic Leave Bank has been approved. No employee shall be allowed to be a leave donor if such donation will reduce that employee's accrued sick and annual leave to less than 80 hours. (Exception: an employee who is terminating employment may donate all accrued leave time and is not required to maintain the 80-hour leave balance.)

Leave Recipient means a current employee for whom the Administrative Affairs Committee has approved an application to receive catastrophic leave from the institution's Catastrophic Leave Bank.

Medical Condition means a personal emergency limited to catastrophic and debilitating medical situations, severely complicated disabilities and severe accident cases of the employee or a qualifying family member, which causes the employee or qualifying family member to be incapacitated and requires a prolonged period of recuperation and which requires the employee's absence from duty as documented by a licensed healthcare provider within the area of specialty related to the medical condition. Routine disabilities or disabilities resulting from elective surgery do not qualify for catastrophic leave.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 3 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

For maternity purposes, the birth of the employee's biological child or placement of an adoptive child in the employee's home the medical condition. Approved catastrophic leave will be granted for the birth of the employee's biological child effective the date of birth or after and approved catastrophic leave will be granted for the placement of an adoptive child in the employee's home effective the date of the child is placed in the home or after, but both within the first twelve (12) weeks after the birth or placement.

Debilitating refers to a medical condition, illness, or injury—physical or mental—that is severe, incapacitating, and long-term in nature. It must be certified by a licensed physician as requiring the employee to be absent from work for a continuous period of time and be of such severity that it substantially limits one or more major life activities or bodily functions, preventing the employee from performing the essential functions of their position.

Prolonged Period of Time means a continuous period of time whereby a medical condition prevents the employee from performing the employee's duties. A prolonged period of time is interpreted to be a minimum of 30 working days, except for maternity purposes.

Substantial Loss of Income means a continuous period of time where the employee will not have otherwise been compensated by ANC due to a medical condition and the exhaustion of all earned sick, annual, holiday, and compensatory leave, and such medical condition is not covered and compensated by Worker's Compensation. This requirement does not apply for maternity purposes.

I. **Catastrophic Leave Policy**

Arkansas Northeastern College's Catastrophic Leave Policy Committee will be comprised of appointed departmental representatives as follows:

Academic Affairs (two)
Community/Continuing Education/Learning Resources/Off-Campus Location (two)
Student Services (two)
Administrative Affairs (one)

II. **Record Keeping**

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 4 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

The records for the Catastrophic Leave Program will be maintained in the Human Resources Office. Records will reflect the amount of leave donated, date, rate of pay and dollar value at the time of donation, amount of Catastrophic Leave awarded, including name of the recipient, position number, and rate of pay at the time of receipt of donation.

III. Implementation

A series of meetings will be conducted across campus to explain Arkansas Northeastern College's Catastrophic Leave Bank Program. The meetings will be conducted by the Chief Human Resources Officer and Human Resources Office staff. Each employee eligible to participate in the Catastrophic Leave Bank Program will receive a donation card. Eligible employees wishing to voluntarily donate annual or sick leave to the program may fill out the card, sign, and return to the Human Resources Office. (The card will designate the minimum and maximum contribution allowable per employee per calendar year.) A series of computer programs will be written that will maintain the Catastrophic Leave Banks Records. The records will reflect the amount of leave donated, rate of pay, and dollar value at the time of the donation.

IV. Prohibition of Coercion

It is the policy of Arkansas Northeastern College not to intimidate, threaten, or coerce any employee for the purpose of interfering with any employee's decision to donate, receive, or use annual or sick leave.

V. General Policies

- A. Accrued annual leave and/or sick leave may be donated to the Catastrophic Leave Bank.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 5 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

- B. Catastrophic Leave with pay may be granted to an employee when such employee is incapacitated for the performance of the employee's duties due to a catastrophic illness or maternity leave.
- C. Eligibility Qualifications
1. The employee has been employed by Arkansas Northeastern College for more than one year;
 2. An acceptable medical certificate from a licensed healthcare provider who is practicing within the area of specialty related to the medical condition supporting the continued absence is on file. This requirement does not apply for maternity purposes.
 3. The employee has not been disciplined for any leave abuse during the past one year. This requirement does not apply for maternity purposes.
 4. At the onset of illness or injury, the employee must have at least eighty (80) hours of combined sick and annual leave and must have exhausted all leave, unless an exceptional circumstance waiver is granted by the President; This requirement does not apply for maternity purposes.
 5. The total of catastrophic leave granted within a calendar year may not exceed six hundred forty (640) hours, consisting of up to 480 hours of illness or injury and 160 hours of maternity purposes;
 6. An employee shall not be approved for catastrophic leave for maternity purposes unless the employee has provided acceptable proof of birth or placement. For the birth of an employee's biological child, acceptable proof includes a hospital announcement with the mother's name and/or the biological child's name, hospital discharge papers with the mother's name and the biological child's name, or a birth certificate of the biological child. For the placement of an adoptive child in an employee's home, acceptable proof includes formal document from the placement entity with the mother's name and the child's name or legal guardianship papers with the mother's name and the child's name.
- D. Any employee on Catastrophic Leave will continue to accrue leave in accordance with existing state leave policies and will receive normal benefits such as Arkansas Northeastern College contributions to insurance and retirement. Catastrophic Leave will not change an employee's salary increase eligibility date. Any leave earned while an employee is on Catastrophic Leave must, as a condition of voluntary participation in the program, be assigned to the

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 6 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

Catastrophic Leave Bank, and any restrictions concerning the maintenance of minimum leave balances shall not apply to such assignment.

- E. Any unused Catastrophic Leave will be returned to the program in the event the employee is terminated, retires, or returns to work prior to the expiration of the previously approved Catastrophic Leave period. An employee may be dismissed if such employee fails to report to work promptly at the expiration of the period of approved Catastrophic Leave. Nothing, however, shall prevent Arkansas Northeastern College from accepting satisfactory reasons provided by the employee in advance of the date the employee is scheduled to return to work, and from granting leave without pay status to an employee prior to and after the expiration of such Catastrophic Leave if, in the view of the Administrative Affairs Committee, such action is warranted.
- F. Accrued leave may only be donated to the Catastrophic Leave program in eight-hour increments. Catastrophic Leave may be granted in eight-hour increments, in dollar increments, or a combination to coordinate with disability insurance not to exceed 100 percent of the employee's normal gross pay. Unused hours of awarded Catastrophic Leave will be returned to Arkansas Northeastern College Catastrophic Leave Banks. No such donation will reduce that employee's combined accrued sick leave and annual leave balance to less than 80 hours. No employee may donate more than 40 hours in a calendar year to the Catastrophic Leave Program. The Administrative Affairs Committee reserves the right to make exceptions to the 40-hour rule.
- G. The Catastrophic Leave Bank Program does not create any expectation or promise of continued employment.

VI. Committee Guidelines

The Catastrophic Leave Committee shall meet as needed to review all catastrophic leave requests. The Human Resources Office staff will be responsible for submitting to the committee only those requests that meet minimum qualifications. The Committee shall utilize the following guidelines to review Catastrophic Leave requests:

- A. No employee shall be eligible for approved Catastrophic Leave in excess of six continuous months (1040 hours) within a three (3) year period unless it can be

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM PROFESSIONAL EMPLOYEES	NUMBER 4.8
LEGAL REFERENCE Act 169 of 1991; Act 441 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 7 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12-10-25

demonstrated that the employee has been denied disability retirement or Social Security benefits. This requirement does not apply for maternity purposes.

- B. If the illness or injury is that of an employee and is covered by worker's compensation, the compensation based on Catastrophic Leave when combined with the weekly worker's compensation benefit received by the employee shall not exceed the compensation being received by the employee at the onset of the illness or injury.
- C. No employee shall be approved for Catastrophic Leave unless the employee has provided an acceptable medical certificate from a licensed healthcare provider within the area of specialty related to the medical condition supporting the continued absence and setting forth that the employee or a qualified family member is and will continue to be incapacitated from performing the employee's assigned duties such as functional job descriptions, should be made available to the licensed healthcare provider. This requirement does not apply for maternity purposes.
- D. Catastrophic Leave, for maternity purposes, may be awarded after the birth of a biological child or placement of an adoptive child and shall not exceed four (4) continuous weeks (160 hours).
- E. In no case shall Catastrophic Leave be granted beyond the date the licensed healthcare provider certifies that the employee is able to return to work.
- F. Catastrophic Leave which would result in a negative balance in ANC's Catastrophic Leave Bank shall not be approved.
- G. Determinations by the Catastrophic Leave Committee shall be reviewed by the President of Arkansas Northeastern College.
- H. Determinations by the Catastrophic Leave Committee shall be reviewed by the Administrative Affairs Committee for information purposes.
- I. The decision of the President shall be final and binding. Nothing shall prevent the President from taking into account the impact of the College's operation in granting or denying Catastrophic Leave or in modifying previously approved Catastrophic Leave if, in the judgement of the President, such approved leave would seriously impact the College's operation, In exceptional circumstances, the President may allow catastrophic leave that does not conform to all applicable policies.
- J. Catastrophic Leave shall not be awarded retroactively.
- K. Applications for Catastrophic Leave shall be reviewed on a first-filed, first-considered basis.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 1 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

I. Annual Leave

All regular full and half-time nonclassified employees, excluding faculty, are eligible for a prorated annual vacation leave with full pay. Annual vacation leave for 12 and less than 12 month employees will accrue on a prorated basis each month in accordance with the following monthly schedule. Twelve-month employees will accrue leave annually per chart below, while less than 12 month employees will accrue leave annually based on the number of contracted months of employment.

Half-time employees will accrue leave monthly at one-half of the annual leave accrual rate of a full-time employee.

Employment	Monthly	Annually
Through 3 years	1 day	12 days
4 through 5 years	1 day, 2 hours	15 days
6 through 12 years	1 day 4 hours	18 days
13 through 20 years	1 day, 6 hours	21 days
Over 20 years	1 day, 7 hours	22.5 days

Accrual rates will change on the first day of the month following eligibility for the next higher accrual rate.

Annual leave accrued during a calendar month is not considered to be earned by an active employee until the last working day of the month, and the leave must be earned before it can be used. Employees will not borrow from anticipated future accruals and may not use annual leave accrued by other employees.

The minimum annual leave amount an employee can use is fifteen (15) minutes.

Any leave in excess of 30 days must be used by December 31 of each year or it will be forfeited by the employee. Employees who are on leave without pay for ten (10) or more cumulative days within a calendar month do not accrue annual leave. Upon termination, resignation, retirement, or other action by which a person ceases to be an active employee, the employee will be paid for all unused annual leave up to a

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 2 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

maximum of 30 days. Upon death of an active employee, the amount of unused annual (and holiday) leave due the employee shall be paid to the employee's estate or authorized beneficiary and will not exceed sixty (60) days of annual leave and holiday leave. Employees transferring between state agencies without a break in service retain all accumulated leave.

Half-time permanent employees who work 1,040 hours or more per year, will be granted leave time and holiday pay according to a proration of the full-time employee's rate, calculated by dividing the annual number of hours worked by 2,080.

II. Sick Leave

All full-time employees, upon accepting a contractual position with the institution, shall be entitled to five (5) days of sick leave. Additional sick leave shall accumulate at the rate of one day per month of service to a total of 120 days so long as only 120 days are carried over at the end of the calendar year. The five (5) days awarded at the time of employment shall be included in the 120-day total.

Sick leave accrued during a calendar month is not considered to be earned by an active employee until the last working day of the month, and the leave must be earned before it can be used. Employees will not borrow from anticipated future accruals.

Nine, 10, and 10.5 month faculty who teach during the summer sessions earn sick leave as follows: one to three credit hours – four hours, four to six credit hours – eight hours.

The minimum sick leave amount an employee can use is fifteen (15) minutes.

Absences due to sick leave, except in the case of maternity leave, shall be charged in the following order: (1) earned sick leave; (2) earned annual leave; (3) leave without pay.

After an illness which causes the use of sick leave, the employee should complete the Request for Leave form. Employees who are on sick leave for (5) or more consecutive days must furnish a certificate of illness from an attending physician or Christian Science practitioner listed in the Christian Science Journal.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 3 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

Sick leave may be used by employees because of illness, injury, or for medical, dental, or optical treatment. Sick leave may also be granted to employees due to death or serious illness of a member of the employee's immediate family. Immediate family means father, mother, sister, brother, spouse, child, grandparents, grandchild, in-laws, or any individual acting as parent or guardian of an employee. The use of sick leave is contingent upon the occurrence of one of the events listed above. If the event never occurs, the employee is not entitled to the sick leave benefits.

Requests to use sick leave for medical, dental, or optical examinations, hospital stays, funerals, etc., should be made in advance, unless the hospital stay is the result of an emergency medical condition.

Upon retirement or death, any employee, or beneficiary of any employee, may receive compensation for accumulated unused sick leave based on formula in Arkansas Annotated Code § 21-4-501. In no event shall an employee, or beneficiary, receive an amount that exceeds \$7,500 upon retirement or death of an employee. To receive a retirement payout of sick leave, the employee must meet the early retirement incentive guidelines or age plus years of service equal seventy (70) or more.

Employees absent from work due to temporary occupational injury or illness and who are entitled to Worker's Compensation benefits may utilize accrued sick leave as a supplement to such benefits. The combination of benefits and sick leave pay shall not exceed the employee's normal pay period salary.

III. Bereavement Leave

A full-time employee may request three days of absence without loss of pay for the death of a member of the immediate family. Immediate family means father, mother, sister, brother, spouse, child, grandparents, grandchild, in-laws, or any individual acting as parent or guardian of an employee. Such request must be approved by the employee's supervisor and shall be deducted from the employee's accumulated sick leave. Additional bereavement leave not to exceed three days may be approved on request.

IV. Leave of Absence Without Pay

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 4 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

In rare cases and for extenuating circumstances, a leave of absence may be granted by the President for extended periods at no pay.

V. Court and Jury Leave

Jury leave is authorized for an employee who is subpoenaed as a witness to give a deposition or testimony in state or federal court, at a hearing, or before anybody with power to issue a subpoena. The employee will not be required to take annual leave if the matter is within the employee's scope of employment. If the matter is outside the employee's scope of employment annual leave may be required. The employee should consult the Human Resources Office to determine whether or not annual leave will be charged for the absence.

VI. Military Service Leave

Employees who are members of the National Guard or any reserve military branch of the U.S. Armed Forces will be granted leave at the rate of 15 working days per calendar year, plus necessary travel time for annual training purposes. Up to fifteen (15) unused military leave days may be carried over to the succeeding year for a maximum of thirty (30) military leave days for military training purposes that calendar year. Employees requesting military leave must provide written or oral notification prior to going on duty, unless precluded by military necessity.

VII. Organ Donor Leave

An employee is entitled to leave with pay for up to thirty (30) days per calendar year to serve as human organ donor. In addition, an employee is entitled to leave with pay for up to seven (7) days per calendar year to serve as a bone marrow donor. To qualify for either leave, written requests from both the employee and the medical professional performing the transplantation are required. Following the transplantation, written verification of fact must be provided by the same physician.

VIII. Children's Education Leave

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 5 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

An employee is entitle to eight (8) total hours of leave during any one (1) calendar year to attend or assist with the educational activities of a child. The child may be enrolled in prekindergarten through grade 12 and related to the employee as a: natural child, adopted child, stepchild, foster child, grandchild, or ward of the employee or any other legal capacity where the employee is acting as parent for the child. The educational activity is any school-sponsored activity including: parent-teacher conference, participation in school-sponsored tutoring or volunteer program, field trip, classroom program, school committee meeting, or academic competition, assisting with athletic, music, or theater programs.

Unused Children's Education Leave may not be carried over to the next calendar year and is not compensable to the employee at retirement.

IX. Family and Medical Leave (FMLA)

The Family and Medical Leave Act of 1993 (Title 29, Code of Federal Regulations Part 825) entitle "eligible" employees to a total of 12 work weeks of leave during any 12-month period for one of the following reasons:

- A. The birth and care of a newborn child of the employee;
- B. The placement with the employee of a son or daughter for adoption or foster care;
- C. To care for a spouse, son, daughter or parent with a serious health condition, and;
- D. For qualifying exigencies arising out of the fact that the employee's spouse, son, daughter, or parent is on active duty or call to active duty status as a member of the National Guard or Reserves in support of a contingency operation.

A covered employer must also grant an eligible employee who is a spouse, son, daughter, parent, or next of kin of a current member of the Armed Forces, including a member of the National Guard or Reserves, with a serious injury or illness up to a total of 26 work weeks of unpaid leave during a "single 12 month period" to care for the service member.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 6 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

The 12 month period used by the College for determining eligibility is the calendar year. In the case of birth or adoption, eligibility for FMLA leave shall expire at the end of the 12 month period beginning on the date of a child's birth or placement. However, leave used for this purpose shall also be calculated on a calendar year basis.

X. Personal Leave

All permanent, non-classified employees, including faculty are eligible for leave with pay each academic year for personal reasons. Personal leave is noncumulative and requires prior approval on the Request for Leave Form by the Dean/Chairperson/Director/Coordinator and the appropriate Vice President. Hours of personal leave are determined pro rata based on employment status as shown below:

Full-time employees – 16 hours per year
Three-quarter time employees – 12 hours per year
Half-time employees – 8 hours per year

XI. Wellness Leave

All permanent, non-classified employees, including faculty are eligible for leave with pay each calendar year to have a preventative exam as part of the WellYou Program. Wellness leave is noncumulative and requires prior approval on the Request for Leave Form by the Dean/Chairperson/Director/Coordinator and the appropriate Vice President. Hours of wellness leave are determined pro rata based on employment status as shown below:

Full-time employees – 8 hours per calendar year

XII. Exhaustion of Leave Policy

An employee that has exhausted his/her leave balances, including, but not limited to personal, annual, sick, or formally approved compensatory time will immediately be placed on a 30 day probation period upon the first occurrence of absence without approved leave.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 7 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

The employee may request leave under the provisions of the Family and Medical Leave Act (FMLA) and/or Arkansas Northeastern College's Catastrophic Leave Policy, if applicable.

- Preferably, the FMLA form will be completed 30 days before the employee's leave is exhausted, but must be completed immediately upon returning to the workplace by the affected employee.
- The Chief Human Resource Officer will either approve the FMLA request, thus permitting the employee continued employment at ANC, or deny the request.
- This notification will take place within 48 hours of the request.

If the FMLA request is denied, a committee consisting of the Chief Human Resource Officer, a faculty representative, and a classified staff representative will either place the employees on disciplinary probation or terminate the employee.

- The committee will be formed on an as-needed basis, with the Chief Human Resource Officer selecting the members of the committee.
- Notification of the decision of the committee will take place within 7 days.

Any request for Catastrophic Leave will be reviewed by the Catastrophic Leave Committee and be approved or denied by the Administrative Affairs Committee.

- Notification of the decision of the Catastrophic Leave Committee and the Administrative Affairs Committee will take place within 7 days of the request.

Finally, a Leave of Absence Without Pay (LWOP) may be requested from the President.

- Notification of the President's decision will take place within 7 days of the request

Any employee that has exhausted all sources of leave as described from work without appropriate leave use or obtaining FMLA leave, LWOP, or Catastrophic Leave, will be terminated at the end of the 30 day probation period. This includes employees that have failed to accumulate additional leave while placed on a disciplinary probation as described above.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE - PROFESSIONAL	NUMBER 4.9
LEGAL REFERENCE	PAGE 8 OF 7
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 9-8-84, 6-14-89, 12-10-97, 8-18-04, 8-17-11, 12-14-11, 10-16-24

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE MATERNITY LEAVE GUIDELINES	NUMBER 4.10
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-14-87, 12-10-97, 8-18-04, 8-17-11

- I. Request for leave and leave procedures will be provided the employee, at the employee's request, by Human Resources Office or Chief Human Resources Officer.
- II. The employee should submit a request for maternity leave to her immediate supervisor two months in advance of due date. The supervisor should then route the request to the Human Resources Office.
- III. Accompanying an employee's advance request for maternity leave should be a physician's written statement specifying how much estimated time off an employee will need after the birth.
- IV. Because a employee, for maternity reasons, may elect the type of leave request (sick, annual, leave without pay, FMLA, in any order or combination), the request must state the type(s) and amount(s) chosen. Leave of absence without pay must be approved by the President.
- V. Approximately two weeks prior to the expiration of the physician's specified period of time off, the employee will be sent a confirmation letter stating the date for reporting back to work. If the date must be changed, another physician's written statement will be required.

If the employee elects not to return, she will be sent the necessary termination papers for completion.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE OUTSIDE EMPLOYMENT	NUMBER 4.15
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 87-1-84, 12-10-97, 8-18-04, 8-17-11

The primary obligation and responsibility of the faculty member is the performance of duties at the College. Faculty shall not engage in other teaching or substantial remunerative activity without first advising and obtaining the approval of the Chief Academic Officer. This provision is to ensure that there is adequate time for teaching, advising, appropriate study and research in working with learning difficulties encountered by individual students, and for participation in other academic responsibilities.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE STANDARDS FOR EMPLOYMENT	NUMBER 4.19
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 7-18-76, 12-10-97, 8-18-04, 8-17-11

Faculty members teaching in the General Education and Transfer curriculum should have the minimum of a master's degree with 18 graduate semester hours in their teaching area. Any exception to this minimum must be approved by the President. Previous teaching experience is strongly preferred as is knowledge and acceptance of the comprehensive community college concept.

Faculty members teaching in the non-transfer tracks including Associate in Applied Science, technical certificate, certificate of proficiency, or Developmental Education should have the minimum of the baccalaureate degree, related industrial-business expertise, and/or applicable nationally recognized specialty certification/licenses generally acceptable and recognized by other community/technical colleges.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE HIRING PROFESSIONAL STAFF	NUMBER 4.21
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-14-82, 4-8-87, 12-10-97, 8-18-04, 8-17-11, 10- 16-24, 06-18-25

Full-time faculty and academic positions (including administrative are advertised internally, regionally, and usually nationally as time permits. Applications may be solicited by direct mail to select colleges and universities, to the Arkansas State Department of Higher Education, and/or in regional newspapers and the ANC website. In addition, if deemed necessary and publication deadlines allow it, the available position may be announced in an appropriate journal and/or the *Chronicle of Higher Education*. Applicants currently on retained file are notified if a position becomes available in their field. The screening process includes the sorting of applicants by the direct supervisor, a position selection committee appointed by the appropriate Cabinet member, and the Cabinet member. References and credentials are checked and verified. The top candidate(s) is/are then invited for an interview, and the appropriate Cabinet member visits the candidate's references by telephone or in person. The candidate is then recommended by the Cabinet member, in writing, to the president and appropriate contract and salary placement offer negotiated. A background screening is required on all selected candidates before official offer of the position is made.

The Director of Huma Resources then forwards to the candidate a letter of offer stating the type of contract, salary, and conditions as approved by the President. During the hiring process, the Affirmative Action Plan for the College is followed. No salary or contract condition agreements may be made to any candidate without prior authorization of the President.

The President, upon approval, can negotiate or hire a highly qualified internal or external applicant if deemed in the best interest of the college.

Probationary Period

The purpose of the College probationary period is to provide assurance that the person employed can satisfactorily fulfill the demands of the position.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE HIRING PROFESSIONAL STAFF	NUMBER 4.21
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-14-82, 4-8-87, 12-10-97, 8-18-04, 8-17-11, 10- 16-24, 06-18-25

Initial Appointment: All employees at the time of their appointment to the College shall serve a minimum probation of sixty (60) calendar working days. During this probation, each employee shall be evaluated periodically in a manner consistent with the College's personnel policies and procedure. An employee may be terminated without cause during the probationary period when such action is deemed to be in the best interest of the College. An employee serving a probationary period will not be considered as an internal applicant for other position openings until he/she has completed his/her probation satisfactorily.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EVALUATIONS	NUMBER 4.23
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 7-8-76, 6-13-90, 8-11-93, 12-10-97, 8-18-04, 8-17-11

The evaluation of each faculty member shall be completed once each year. The evaluation shall be based upon input from the following sources:

- I. Student evaluation (each student shall have the opportunity to evaluate each course for which the student is enrolled in any semester or term).
- II. Peer evaluation.
- III. Dean/Chairperson/Director/Coordinator's evaluation including the review of productivity/academic achievement.
- IV. Faculty self-evaluation narrative to include a response to student evaluations, a discussion of instructional strengths and weaknesses, a discussion of service to the College/community and a discussion of professional/personal improvement. The self-evaluation narrative must include an annual plan of action.
- V. Dean/Chairperson/Director/Coordinator conference and recommendation.
- VI. Chief Academic Officers' review.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CONTRACTS	NUMBER 4.25
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 7-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11

The faculty member is appointed to teach in classes as directed by the President of Arkansas Northeastern College, including both day and evening programs. Instructors are to perform duties and accept responsibilities as set forth in the Academic Staff Handbook and also to perform other duties in College-related activities as requested by the President or his designate. The standard faculty contract is for nine months.

The salary is determined by the teacher's academic preparation and experience as defined on the Arkansas Northeastern College Salary Schedule.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE RESIGNATIONS	NUMBER 4.27
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 7-8-76, 2-10-88, 12-10-97, 8-18-04, 8-17-11

Faculty members who wish to resign should make every effort to do so prior to the issuance of the following year's contract. Resignations must be in writing and submitted to the Chief Academic Officer and the President.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE GRIEVANCE PROCEDURES (FACULTY AND ADMINISTRATIVE STAFF)	NUMBER 4.29
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-14-82, 8-12-87, 12-10-97, 8-18-04, 8-17-11

Arkansas Northeastern College recognizes the right of faculty and staff members to seek a solution concerning disagreements arising from employment relationships, and the employee assertion that he or she has been wronged with regard to employment contract, College policy, procedure, or professional standards.

Resolutions to disagreements should originate from informal grievance procedures if at all possible.

Informal grievance processes are initiated by a meeting between the employee and immediate supervisor or chairperson. At this time, the problem should be defined completely, and possible resolutions should be discussed. Every effort should be made at this level to reach an equitable solution. If at this meeting the issue is not resolved, the personal should request a conference with the appropriate Cabinet member. If no resolution is found and the problem still exists, formal grievance procedures are then initiated.

Formal Grievance Procedures

- I. No formal grievance shall be processed until the Professional Standards Committee has assessed whether there are reasonable grounds for considering the complaint based on existing policy of the College and whether the complainant has exhausted the prior informal grievance processes.
- II. The complainant shall file a formal complaint with the Professional Standards Committee through the office of the Chief Academic Officer. The written complaint should outline the problem, include the resolution/remedy sought, and summarize reasons why informal procedures have been unsatisfactory.
- III. The Committee shall, in confidence, hear testimony for the complaint from all individuals that the Committee determines necessary to reach a decision. The jurisdiction and authority of the Professional Standards Committee shall be to hear evidence, to make findings of fact, and to make recommendations based upon those facts.
- IV. A report of "Findings and Recommendations" will be forwarded to the Chief Academic Officer. The Chief Academic Officer may take actions recommended

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE GRIEVANCE PROCEDURES (FACULTY AND ADMINISTRATIVE STAFF)	NUMBER 4.29
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-14-82, 8-12-87, 12-10-97, 8-18-04, 8-17-11

by the Committee or reject recommendations, may modify recommendations, or may remand the recommendations of the Committee for further consideration.

- V. If the aggrieved person is not satisfied with disposition of his/her grievance at this level, then the grievance should be presented to the President of the College in writing attached to all previous findings and recommendations.
- VI. If at this level the problem is not resolved, the complainant should, after a period of ten days, submit the nature of the grievance in writing to be conveyed to the Board of Trustees through the Office of the President. The Board of Trustees shall arrange consideration of the complaint and render its decision. The decision of the Board will be final.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TERMINATION	NUMBER 4.31
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 7-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11

In the case of any faculty member whose contract is terminated prior to the issuance of new contracts and during an existing contract period, the following procedures apply:

- I. Letter to said faculty member from the Chief Academic Officer indicating termination of the contract.
- II. Any faculty member receiving said letter terminating the contract may, within ten days of receipt of said letter, initiate the following
 - Request and receive, within ten days, an appointment with the President (and other concerned parties who the President and faculty member agree should attend) appealing termination action.
 - Upon failure to receive satisfaction of his appeal to the President the faculty member may, within ten days, request a hearing before the members of the Board of Trustees. Said hearing will be granted at the next regular meeting of the Board of Trustees or earlier, at the discretion of the Board.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CREDENTIALS/PERSONNEL FILE	NUMBER 4.33
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-14-82, 10-14-87, 12-10-97, 8-18-04, 8-17-11, 12-14-22

Each instructor must maintain a personal file with the Office of Instruction/Human Resources, which will include:

- I. Resume and official copies of transcripts of all college work taken (CAO & HR)
- II. Current mailing address, telephone numbers, and email address (HR)
- III. Copies of contracts (HR)
- IV. Summaries of recent student evaluations, self-evaluations, and Dean/Chairperson/Director/Coordinator recommendations (CAO)
- V. An employment eligibility verification form (I-9) (HR)
- VI. Rank Portfolio (CAO)

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE REPORTING EMPLOYEE ABSENCES	NUMBER 4.35
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 4-14-82, 2-10-88, 12-10-97, 8-18-04, 8-17-11

If an instructor is to be absent from work, the immediate supervisor and the Chief Academic Officer must be notified as soon as possible. If classes will be missed, every effort should be made to notify the students prior to the class meeting. This is especially important in evening courses. When a notice is posted on the classroom door, it should be typed and initiated by the division chairperson.

Only under emergency circumstances would a personal day be approved without a three-day prior notice so that classes might be informed and arrangements made for classes to be covered.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ATTENDANCE AT COMMENCEMENT	NUMBER 4.37
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 12-10-97, 8-18-04, 8-17-11, 10-16-24

Attendance at commencement is part of a cabinet member, and faculty member, academic staff member contract and responsibility to the community, institution, and students, unless prior written approval has been granted by the President.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE OFFICE HOURS	NUMBER 4.39
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11, 12-13-23

Proposed Faculty Office Hours Policy

Fulltime faculty should maintain stated and regular office hours to provide ready access and convenience for students. A minimum of ten (10) office hours per week are required. Eight (8) of those hours must be on campus and two (2) hours may be virtual.

Office hours will determined by the faculty member in consultation with the respective dean.

Office hours should be posted so that students may easily locate an instructor for consultation.

A copy of the scheduled office hours must be filed with the Chief Academic Officer.

The requirements for minimum availability of instructors for students, administrators, meetings, etc., include the following:

- I. Fifteen (15) classroom hours per week and ten (10) office hours per week equal a minimum of twenty-five (25) hours per week.
- II. Two (2) of the scheduled office hours may be virtual.
- III. Office hours, on campus or virtual, are required Monday through Friday to meet contract day obligations.
- IV. Office hours must include afternoon and/or evening hours.

Faculty who teach internet classes as a part of their regular 15 hour load must still meet their contract day obligations and have 10 office hours per week as described above.

Faculty are expected to be available and participate in departmental, division, and college-wide meetings and/or activities that may exceed the 25 hours per week.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE COMMUNITY RESPONSIBILITY	NUMBER 4.41
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 12-10-97, 8-18-04, 8-17-11, 10-16-24

An employee of Arkansas Northeastern College is regarded by persons in the community as an agent of the College. Therefore, what constitutes good taste and judgment should guide him/her in all his/her external relationships and contacts. Any action by an employee which, in the judgment of the administration, brings serious discredit or which reflects unfavorably upon the institution shall be cause for reprimand or dismissal.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TEACHING LOAD	NUMBER 4.43
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11

Members of the faculty, on or off campus, are required to assume teaching assignments in any part of the schedule of classes, day or evening, at the determination of the Chief Academic Officer. Fifteen semester hours (30 semester hours per year), or the equivalent thereof, is the normal teaching load of all faculty members.

Teaching loads are determined by the Chief Academic Officer in conjunction with division Dean/Chairperson/Director/Coordinator.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ACADEMIC FREEDOM	NUMBER 4.45
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 12-10-97, 8-18-04, 8-17-11

The faculty member is a citizen, a member of a learned profession, and a representative of the College. When speaking or writing as a citizen, the faculty member should be free from institutional censorship or discipline, but the special position in the community imposes special obligations as an individual. As a person of learning and an educator, the faculty member should remember that the public may judge the profession and his/her institution by what is spoken or written. Hence, he/she should at all times be accurate, exercise restraint, show respect for the opinions of others, and make every effort to indicate that he/she is not an institutional spokesperson.

The faculty member is entitled to full freedom in research and in the publication of the results, subject to the adequate performance of his/her other academic duties, but research for pecuniary return shall be based upon an agreement with the President of the College.

The faculty member is entitled to freedom in the classroom in discussing his/her subject, but should be careful not to introduce into teaching controversial matter which has no relation to the subject field.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ATTENDANCE AT CONFERENCES	NUMBER 4.47
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11

As a part of their continuing professional growth, instructors are encouraged to join pertinent, professional organizations and attend the associated meetings and conferences. Travel funds, may be applied for and received depending upon budge and College-wide goals and purposes.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE REPORTS AND RECORDS	NUMBER 4.49
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 12-10-97, 8-18-04, 8-17-11

It is necessary for instructors to maintain accurate records on students in their classes, especially concerning attendance. The instructor has a responsibility to the Registrar's Office to assist in the maintenance of an accurate class roster for each section taught.

Instructors will be required to assist in providing information for various reports, grant applications, and institutional evaluations.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE GRADES	NUMBER 4.51
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 4-14-82, 12-10-97, 8-18-04, 8-17-11

I. Grades

Instructors must maintain accurate student records, including grades and attendance for a minimum of one academic year. It is the instructor's responsibility, within broad College policies, to design and apply a fair and equitable grading system. A grading system should be used which reflects, as nearly as possible, the instructor's philosophy toward the relative importance of factors influencing a course grade.

II. Tests

Tests or other evaluations of progress should be given frequently enough to establish a fair basis for evaluation of the student.

Mid-Term Grades

Mid-term grades are issued in a clear statement of academic progress.

Final Examinations

A final examination schedule is provided at the close of each regular semester in order to allow a block of time for comprehensive examinations. Instructors should use this opportunity to administer final examinations or assess for the improvement of student learning.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TEXTBOOK ADOPTIONS	NUMBER 4.55
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 4-14-82, 2-10-88, 12-10-97, 8-18-04, 8-17-11, 12-14-22

Textbook adoptions are primarily the responsibility of the faculty in consultation with the division Dean/Chairperson/Director/Coordinator and must be approved by a selection committee. Serious consideration should be given the adoption because of the unnecessary expense the student and the institution are caused by frequent textbook changes. Course sections assigned to part-time or overload faculty will use textbooks selected by the division.

At the time a textbook change is made, teacher desk copies should be requested from the publisher for each faculty member teaching the course. Desk copies obtained from the bookstore are charged to the division budget. Although the College recognizes that is a matter of individual choice and professional philosophy, the College does not approve of the sale of complimentary book copies to solicitors for subsequent resale.

Per AR § Code 6-60-601 (2012) Textbooks and required course materials must be published on the ANC website and posted in the ANC Bookstore no later than November 1 for the following spring semester, and no later than April 1 for the following summer and fall semesters.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TUTORING	NUMBER 4.57
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 7-1-84, 12-10-97, 8-18-04, 8-17-11

No instructor should contract to tutor any ANC student for any form of remuneration from another source without informing the Chief Academic Officer.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CLASSROOM HOURS	NUMBER 4.59
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 9-8-76, 2-10-88, 12-10-97, 8-18-04, 8-17-11

A community college's strength relies heavily on quality classroom instruction. As such, it is extremely important to meet classes for the required length of time. No class is to be canceled or changed from its official meeting time or place without prior approval of the appropriate Dean/Chairperson/Director/Coordinator.

The standard unit of college work is called the credit hour. A credit hour represents one hour of classroom or direct faculty instruction and a minimum of two hours out of class student work each week for approximately 15 weeks for one semester, or the equivalent amount of work over a different amount of time. Credit hours are not always equal to contact or class hours.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE PROCEDURE FOR APPOINTMENT OF SUBSTITUTE FACULTY	NUMBER 4.61
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 12-12-84, 12-10-97, 8-18-04, 8-17-11

A substitute instructor may be either a full-time College instructor or a qualified individual outside the College employed specifically for substitute service for a period of time during which a regularly assigned instructor is absent. The substitute instructor is not a salaried employee of the College. If appointed from outside the College, and does not participate in employee benefits or programs established for full-time, salaried employees of the College.

Substitute instructors are appointed by the Chief Academic Officer and specifically for service during the period of time when the replaced instructor is absent from the contracted teaching assignment. Required services are to be clearly specified in the employment arrangement and documented in the personnel files. The beginning and ending hours of the work day for which a substitute instructor is appointed will be clearly specified in the appointing document.

All substitute instructors are to be paid at the approved part-time faculty hourly rate.

In the event an instructor is unable to meet a scheduled class, the following procedures will be followed:

- I. General
All substitutes must have prior approval of the Chief Academic Officer and meet the discipline area requirements for which they are substituting.
- II. Sick, Personal, or Bereavement Leave
 - A. The instructor will notify the Dean/Chairperson/Director/Coordinator as soon as possible.
 - B. The Dean/Chairperson/Director/Coordinator will notify the Chief Academic Officer.
- III. If an approved substitute has not been secured by an instructor, the Dean/Chairperson/Director/Coordinator will assign a substitute or teach the class(es).
- IV. Attendance at Meetings
 - A. The instructor will notify the Dean/Chairperson/Director/Coordinator as soon as possible.
 - B. If an instructor is asked to attend a state or national meeting by the Chief Academic Officer, a substitute secured by the instructor may be authorized by

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE PROCEDURE FOR APPOINTMENT OF SUBSTITUTE FACULTY	NUMBER 4.61
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 12-12-84, 12-10-97, 8-18-04, 8-17-11

the College to receive payment. If an approved substitute has not been secured by the instructor, the program Dean/Chairperson/Director/Coordinator will assign a substitute.

- C. If an instructor requests permission from the Chief Academic Officer to attend a state or national meeting, no substitute will be authorized by the College to receive payment. However, the instructor must secure an approved substitute for the class(es) as a condition for leave to attend the meeting. Trade-off among full-time faculty is recommended.

V. Procedure for Payment

To receive payment for substituting, an Authorization for Substitute Instructors voucher must be completed by the Dean/Chairperson/Director/Coordinator and submitted to the Chief Academic Officer.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TERMINATION – NON-CLASSIFIED (PROFESSIONAL STAFF)	NUMBER 4.73
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4-17-2019, 10-16-24

In the case of any professional staff member whose contract is terminated prior to the issuance of new contracts and during an existing contract period, the following procedures apply:

- I. Letter to said professional staff member of indication of termination of the contract.
- II. Any professional staff member receiving said letter terminating the contract may, within ten days of receipt of said letter, initiate the following.

Request and receive, within ten days, an appointment with the President (and other concerned parties who the President and professional staff member agree should attend) appealing termination action.

Upon failure to receive satisfaction of his appeal to the President, the professional staff member may, within ten days, request a hearing before the members of the Board of Trustees. Said hearing will be granted at the next regular meeting of the Board of Trustees or earlier, at the discretion of the Board.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TERMINATION FOR CAUSE – PROFESSIONAL FACULTY AND PROFESSIONAL STAFF	NUMBER 4.75
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4/17/2019

Gross Misconduct is behavior which threatens the safe operation of the college or the health and safety of others. No list of specific misbehavior can contain all types of potential misconduct which may occur. The following are examples of behavior which may fall under the umbrella of Gross Misconduct:

- Insubordination – refusing to follow the directives or maintain the standards of work required by the supervisor, when such directives or standards are legal, reasonable, and included within the employee’s contractual or official job responsibilities. The termination for cause policy shall be implemented for insubordination only when normal procedures as outlined in existing policies (e.g. conferences, grievances, written warnings) have been exhausted or been proven ineffective for curbing negative behavior.
- Actions which endanger the health and safety of others.
- Damaging College or Foundation property by a willful or reckless act
- Conviction of a felony which suggests a danger to others – e.g. physical or sexual assault, terroristic threatening, or other dangerous felonies not covered under other college policies.
- Threatening or harassing language or behavior toward another employee or student

Gross Misconduct reflects a truly severe offense and, as such, may lead to immediate termination without warning or counseling.

Procedures and conditions for the termination of faculty and professional staff are governed by ANC Rule 4.31 and 4.73. Grievance procedures for terminated faculty and administrative staff are governed by ANC Rule 4.29. Faculty misconduct is disciplined through the Professional Standards Committee (ANC Rule 2.4). If possible, these processes should be the preferred option for handling misconduct and/or unsatisfactory work performance on the part of ANC classified staff, faculty, and administrative staff. However, circumstances may arise in which, to curb extremely disruptive behavior or to preserve the safety of college employees, property, or students, drastic and immediate action must be taken.

Employees dismissed for gross misconduct shall retain rights to the grievance procedures specified above.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CODE OF CONDUCT FOR ADMISSIONS, ENROLLMENT, RECRUITING, AND RELATED PRACTICES	NUMBER 4.79
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 06-18-25

Arkansas Northeastern College is committed to serving prospective and current students ethically and commits to fair and transparent practices for all marketing, recruiting, financial aid, and admissions/enrollment processes. All individuals involved in these activities must abide by the Code of Conduct for Admissions, Enrollment, Recruiting, and Related Practices and participate in training as detailed in the Faculty/Staff Handbook.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE SUPPORT STAFF EMPLOYMENT PROCEDURES	NUMBER 5.1
LEGAL REFERENCE	PAGE 1 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 6-14-89, 2-11-98, 8-18-04, 8-17-11, 2-15-12, 10-16-24, 6- 18-25

Arkansas Northeastern College encourages the atmosphere of equal opportunity for all. All personnel actions – hiring, promotion, transfer, and termination – will be administered without regard to race, color, religion, sex, age, national origin, or disability of qualified handicap.

Applicants for support staff positions at the College may be obtained from a variety of sources: (1) personnel currently working for the College in another position, (2) applicants currently on file in the Human Resources Office, (3) applicants from the Arkansas Department of Workforce Services, and (4) advertisements for positions on the ANC website and in newspapers.

The vacancy of a full-time support staff classified position should first be announced internally. Any employee currently working for the College in another position will be considered if he/she makes application in writing and has the proper qualifications for the vacant position.

After screening applications from the above sources, the applicant(s) will be selected and interviewed personally by the department head or supervisor. The final selection is made upon the recommendation of the department head or supervisor, subject to the approval of the appropriate Cabinet member, the President, and the Board of Trustees. A background screening is required on all selected candidates before official offer of the position can be made.

There are two types of support staff employees at ANC: (1) those who hold regular full-time positions and (2) those whose employment is part-time. Part-time employees who work less than 1,000 hours per year are not eligible for employee benefits. Permanent half-time employees who work more than 1,500 hours but less than full-time are eligible for certain benefits on a prorated basis.

Probationary Period

The purpose of the College probationary period is to provide assurance that the person employed can satisfactorily fulfill the demands of the position.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE SUPPORT STAFF EMPLOYMENT PROCEDURES	NUMBER 5.1
LEGAL REFERENCE	PAGE 2 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 6-14-89, 2-11-98, 8-18-04, 8-17-11, 2-15-12, 10-16-24, 6- 18-25

Initial Appointment: All employees at the time of their appointment to the College shall serve a minimum probation of 60 calendar working days. During the probation, each employee shall be evaluated periodically in a manner consistent with the College's personnel policies and procedure. An employee may be terminated without cause during the probationary period when such action is deemed to be in the best interest of the College. An employee serving a probationary period will not be considered as an internal applicant* for other position openings until he/she has completed his/her probation satisfactorily.

Changes in Appointment: An employee who is promoted, transferred, or reassigned within the College will be required to serve another probationary period not to exceed 60 days. However, such probationary periods do not affect the employee's eligibility to the College policies and procedures. At the end of the probationary period, the supervisor will evaluate the employee as to whether this period has been successfully completed or will be extended to not exceed another 60 days.

Rehiring

Upon the rehiring of former employees, the following guidelines shall be used in setting the salary offered:

- I. Employees returning within 20 consecutive working days shall be reinstated at the last salary upon leaving the institution.
- II. Those employees returning after 20 consecutive working days may be rehired at the last salary if:
 - A. The scope of responsibilities of the position has been reviewed with the Chief Human Resources Officer and has not been decreased since last holding the position.
 - B. The College has adequate funding to pay the last remaining salary and is not under budget constraints.
- III. No salary amount shall be discussed with any prospective new or rehired employee without first reviewing the proposed amount with the President.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE SUPPORT STAFF EMPLOYMENT PROCEDURES	NUMBER 5.1
LEGAL REFERENCE	PAGE 3 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 6-14-89, 2-11-98, 8-18-04, 8-17-11, 2-15-12, 10-16-24, 6- 18-25

*Definition of internal applicant. Any full, half, or part-time employee who has been selected for a position at the College in a competitive, affirmative action process and has been successfully completed a probationary period.

Hours Limitations for Part-Time Employees

The Arkansas Public Employees Retirement System (APERS) requires that participating agencies must withhold retirement contributions from part-time employees, as well as pay employer matching contributions (currently 2.7 times the employee contribution), for any part-time employee working more than 80 hours per month for a period of 90 calendar days. It is the policy of Arkansas Northeastern College to not pay any fringe benefits, aside from Medicare and unemployment taxes, on any part-time employees.

As a general operating principle, no part-time contracts will be approved that call for more than 19 hours per week. If time sheets are submitted that results in any part-time employee being paid for more than 19 hours per week, the Payroll Office will notify the employee's supervisor that the employee's hours must be reduced during the next pay period by an amount equal to the hours exceeding 19 hours per week. For example, if there are exactly two weeks in the pay period and the employee works 44 hours (6 hours over the maximum of 38 hours for two weeks), then, the employee can only work 32 hours (38 maximum less the 6 hours of overage) for the first two weeks of the next play period. If a week overlaps two pay periods, the employee can only work 19 hours total for that week.

If a supervisor encounters a **temporary** (defined as less than 90 days) extenuating circumstances (defined as no reasonable possibility exists to address the circumstance with the addition of other part-time employees or reassignment of existing employees), then the supervisor must contract his/her Vice President immediately to draft a written plan describing how exceeding the 19-hour per week maximum for a temporary period will not violate the APERS standard and how the circumstance will be resolved during the temporary period. The Vice President then will present the plan to the Chief Human Resources Officer for approval. **No employees are approved to work in excess of 19-hours per week without the written approval of the Chief Human Resources Officer or the President.**

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE PERSONNEL RECORDS	NUMBER 5.3
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

An employee who has a change of name, address, telephone number, or person to notify in emergency should notify the Human Resources Office promptly.

If an employee has completed additional training or course work, the Human Resources Office should be informed. This will serve as an official record and may assist in determining the employee's qualifications for promotion, salary increases, etc.

All new employees and terminating employees should report to the Human Resources Office to make sure their records are in proper order. Employee folders must contain a completed application form, a transcript when requested, and a position description. Other pertinent information may be filed, including fringe benefits forms.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE SALARY INFORMATION – CLASSIFIED EMPLOYEES	NUMBER 5.5
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

A statewide salary schedule for classified employees is enacted by the General Assembly of the State of Arkansas.

Every position in State Government Agencies and Institutions of Higher Education has been evaluated and graded according to its responsibilities as determined by the State Office of Personnel Management in Little Rock.

Salary increases may be granted as outlined by Pay Plan Implementation procedures as approved by the General Assembly of the State of Arkansas. Pay increases are determined each year by administrative action, giving consideration to legislative approvals, the availability of funds, and an evaluation of each employee's work performance. A pay increase may also be recommended for an employee who has been promoted to a position which carries a higher pay grade.

All full-time and part-time employees are paid on a semimonthly basis and receive their paychecks on the 15th of the month or the last working day prior to the 15th and the last working day of each month.

Payroll deductions will be made automatically for employees of the College for social security, retirement, and federal and state income taxes. Deductions can also be made for health, dental, and life insurance for dependents; United Way; and the Northeast Arkansas Federal Credit Union. All deductions are itemized on the earnings statement which accompanies each check. An automatic check deposit system is available to employees upon request.

Immediately upon employment, all new employees should furnish the Human Resources Office with completed forms necessary for payroll calculations. These are: federal withholding certificate, state withholding exemption certificate, retirement application form with birth certificate or other proof of age, group hospital information, dependent information, and beneficiary for insurance.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE PROMOTIONS – CLASSIFIED EMPLOYEES	NUMBER 5.7
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

Individuals currently employed will receive consideration in filling staff vacancies if they desire to be considered. If interested, the employee should apply for the position in writing and receive a review along with other applicants.

Reclassification

A proposed reclassification of a position can be initiated by a supervisor when it is determined that the duties originally outlined for a job no longer correspond with the present duties being performed. This is done by completing the necessary state forms and submitting them to the Chief Human Resources Officer. If an internal audit of the position verifies it is not properly classified, it is recommended to the President for reclassification. The President and appropriate Cabinet Member will review the request's rejustification, College need, and budget-support capability. If approved, it is then forwarded to the State Office of Personnel Management for action.

Transfers

Before a transfer can take place, it must have the approval of the department head and the administration. In the event of promotion or transfer, two weeks' notice must be given.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TERMINATION – CLASSIFIED EMPLOYEES	NUMBER 5.9
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

Resignation

All classified personnel are asked to give at least two weeks' notice to the Human Resources Office of their intent to terminate employment.

Dismissal

Should it be necessary to terminate an employee because of unsatisfactory work performance, he/she must be given written notice prior to the termination. The supervisor should give an employee at least two weeks' advance notice. However, if an employee is discharged for dishonesty, excessive absence, or other bad conduct, the employee may not be given advance notice.

Should it be necessary to terminate a position because of a necessary reduction of work force in a department, every effort will be made to place the employee elsewhere at the College if possible.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE GRIEVANCE PROCEDURES – CLASSIFIED EMPLOYEES	NUMBER 5.11
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

It is the policy of Arkansas Northeastern College to give prompt and impartial consideration to the complaints of its employees. Employees who submit complaints or grievances in accordance with the procedures which follow may do so without penalty or fear of reprisal.

- I. An employee having a grievance, complaint, or question concerning a condition of his/her employment will take the matter up first with his/her supervisor.
- II. If a mutually agreeable settlement is not reached within a reasonable amount of time, the employee may then submit his/her complaint or grievance in writing to the Chief Human Resources Officer.
- III. Within a reasonable amount of time after receiving the written complaint, the Cabinet members shall consult with the supervisor involved, ascertain all the pertinent facts, examine carefully the policies involved, discuss the matter with the employee and, if feasible, settle the matter within the framework of existing College policy to the satisfaction of the employee and the supervisor.
- IV. If the Cabinet member is unable to settle the matter to the satisfaction of the employee, the matter will be referred to the Human Relations committee. The employee may ask for any full-time employee to assist in presenting the facts of the grievance before the Human Relations Committee.
- V. All of the above steps of the grievance procedure should not take more than 20 days.
- VI. The Human Relations Committee will submit a statement of its findings and recommendations to the President for final decision on the matter. If the employee is still dissatisfied after the final decision is made, he/she may request by letter to the President that the decision be reviewed by the Board of Trustees.
- VII. The employee and members of the Human Relations Committee will be allowed regular pay for the time spent in the grievance conferences held during normal working hours.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE HUMAN RELATIONS COMMITTEE - CLASSIFIED	NUMBER 5.13
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-10-88, REV.2-11- 98, 8-18-04, 8-17-11

The Human Relations Committee hears employee grievance appeals.

- I. The Committee is composed of the following members from the College Community, appointed or reappointed by the President for a period of two years: three full-time faculty members or academic staff, three classified personnel, and a chairperson appointed by the President.
- II. The Human Relations Committee exists for the following purposes and meets only when requested – by the President or by actual need.
 - A. To review and recommend regarding a formal grievance for dismissal, discrimination, or other grievance.
 - B. To serve as one element of due process for classified employees.
 - C. The committees shall adopt rules and procedures as may be required to conduct the functions.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE RETIREMENT AND EXTENSION OF SERVICE	NUMBER 5.15
LEGAL REFERENCE Act 29 U.S.C. 621-634, as amended	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

Effective January 1, 1987, it is illegal to require anyone to retire because of his/her age. There is no mandatory retirement.

For those employees choosing to retire, retirement benefits will be according to the plan in which the employee is enrolled and the adopted regulations of the specific retirement system.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EMPLOYMENT EVALUATION PROCESS	NUMBER 5.17
LEGAL REFERENCE Act 101 of 1985 amended by Act 289 of 2007; Act 449 of 2007	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-10-88, 2-11-98, 8- 18-04, 4-16-08, 8-17- 11

All classified employees shall be evaluated once per year by their immediate supervisors. The evaluation shall be made in writing on a standard form and shall include and examination of job competency, performance of assigned tasks, and work. Since this form may be changed periodically, it is not included in this rule. Employees may obtain a copy of the evaluation form from the Human Resources Office.

A permanent record of this evaluation shall be provided to the employee and the Human Resources Office for filing in the employee's permanent record file.

Should the employee, for any reason, wish to have a review of the evaluation, a request in writing should be made through the supervisor to the appropriate Cabinet Member for further action.

This annual evaluation process should begin at least ninety (90) days before the employee's eligibility date and should be completed thirty (30) days before the employee's eligibility date.

Act 101 of 1985, effective July 1 1985, requires that classified step increases be awarded on the basis of demonstrated performance and has been amended by Act 289 of 2007 to reward employees through annual salary percentage increases by means of individual employee performance. The Arkansas Performance Evaluation Plan is a standards-based system. The administrative procedures developed for the Arkansas Performance Evaluation Plan comply with the requirements of the Office of Personnel Management's Guidelines for Performance Evaluation Systems (1984) as amended by Act 449 of 2007.

These Guidelines require:

- I. Annual performance evaluation.
- II. That the rating supervisor, with input from his/her employee where possible, set the standard for fully satisfactory (mid-level) performance at the beginning of an evaluation period or not later than 30 calendar days after the start of new duties.
- III. That these standards be developed from a list of critical job tasks and stated in terms of observable behavior.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EMPLOYMENT EVALUATION PROCESS	NUMBER 5.17
LEGAL REFERENCE Act 101 of 1985 amended by Act 289 of 2007; Act 449 of 2007	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-10-88, 2-11-98, 8- 18-04, 4-16-08, 8-17- 11

- IV. That the standards be clearly communicated to and understood by the employee.
- V. That the completed standards be reviewed by the next higher official to the rating supervisor or the designated official.
- VI. That a written copy of the reviewed standards be given to the employee.
- VII. That, if a rating supervisor is transferred to another section or terminates employment, performance evaluations must be completed for those employees whose most recent evaluation was completed more than 90 calendar days prior to the supervisor's termination date.
- VIII. That, if at any time during the evaluation period, the supervisor determines that the employee performance has fallen below an acceptable standard, the supervisor must document the below-acceptable performance and counsel the employee.
- IX. That, if an employee's overall performance is determined to be below acceptable, the employee be placed on probation and counseled.
- X. That the completed performance evaluation be reviewed and approved by the next higher official to the rating supervisor or the designated official.
- XI. That employees be allowed to make a formal request for reconsideration of their performance evaluation.

At the end of the rating period, the employee's supervisor will compile the observations made of the employee's performance and summarize them in a "results" statement. The supervisor will then rate the employee's actual performance compared to the expected performance standards. This rating will be done using four categories: Unsatisfactory, Satisfactory, Above Average, and Exceeds Standards. The supervisor will explain these ratings to the employee in a Performance Evaluation Conference.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EMPLOYMENT EVALUATION PROCESS	NUMBER 5.17
LEGAL REFERENCE Act 101 of 1985 amended by Act 289 of 2007; Act 449 of 2007	PAGE 3 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-10-88, 2-11-98, 8- 18-04, 4-16-08, 8-17- 11

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 1 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

General Information

Act 169 of 1991 allows Arkansas Northeastern College to establish a Catastrophic Leave Bank Program for its support staff employees.

Act 441 of 1993 allows Arkansas Northeastern College to expand its current program to include nonfaculty, and nonclassified employees.

Act 1176 of 1999 allows Arkansas Northeastern College to expand its current program to include qualified family members.

Act 182 of 2017 allows paid maternity leave through Arkansas Northeastern College's catastrophic leave bank program.

The Catastrophic Leave Bank is administered by the Human Resources Office. The Chief Human Resource Officer serves as Chairman of the Catastrophic Leave Committee.

Definition of Terms

Catastrophic Illness means a medical condition of an employee or the spouse or parent of the employee, or of a child of the employee which may be claimed as a dependent under Arkansas Income Tax Act of 1929, as certified by a licensed healthcare provider within the area of specialty related to the medical condition, which required an employee's absence from duty for a prolonged period of time and which results in a substantial loss of income to the employee because of the exhaustion of all earned sick, annual, holiday, and compensatory leave time.

Catastrophic Leave means paid leave which is transferred to a leave recipient from the College's Catastrophic Leave Bank. While a leave recipient is on Catastrophic Leave, he or she will receive normal benefits such as College contributions to insurance and retirement.

Catastrophic Leave for Maternity Purposes means an eligible female employee may receive up to four (4) consecutive weeks of paid leave after the birth of the employee's biological child or placement of an adoptive child in the employee's home.

Catastrophic Leave Bank means a pool of accrued annual and sick leave voluntarily donated by employees which may be approved by the College for use by other employees.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 2 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

Catastrophic Leave Bank Program means a program approved by the Department of Finance and Administration and operated by the Human Resources Office to provide for the orderly authorization and administration of Catastrophic Leave.

Catastrophic Leave Committee means a committee comprised of eight members who represent a relative demographic cross section of the College's work force who review applications from employees for Catastrophic Leave and make recommendations to the Administrative Affairs Committee relating to such leave.

Leave Donor means an employee whose voluntary written request to donate accrued annual or sick leave to the Arkansas Northeastern College's Catastrophic Leave Bank has been approved. No employee shall be allowed to be a leave donor if such donation will reduce that employee's accrued sick and annual leave to less than 80 hours. (Exception: an employee who is terminating employment may donate all accrued leave time and is not required to maintain the 80-hour leave balance.)

Leave Recipient means a current employee for whom the Administrative Affairs Committee has approved an application to receive catastrophic leave from the institution's Catastrophic Leave Bank.

Medical Condition means a personal emergency limited to catastrophic and debilitating medical situations, severely complicated disabilities and severe accident cases of the employee or a qualifying family member, which causes the employee or qualifying family member to be incapacitated and requires a prolonged period of recuperation and which requires the employee's absence from duty as documented by a licensed healthcare provider within the area of specialty related to the medical condition. Routine disabilities or disabilities resulting from elective surgery do not qualify for catastrophic leave.

For maternity purposes, the birth of the employee's biological child or placement of an adoptive child in the employee's home is the medical condition. Approved catastrophic leave will be granted for the birth of the employee's biological child effective the date of birth or after and approved catastrophic leave will be granted for the placement of an adoptive child in the employee's home effective the date of the child is placed in the home or after, but both within the first twelve (12) weeks after the birth or placement.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 3 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

Debilitating refers to a medical condition, illness, or injury—physical or mental—that is severe, incapacitating, and long-term in nature. It must be certified by a licensed physician as requiring the employee to be absent from work for a continuous period of time and be of such severity that it substantially limits one or more major life activities or bodily functions, preventing the employee from performing the essential functions of their position.

Prolonged Period of Time means a continuous period of time whereby a medical condition prevents the employee from performing the employee's duties. A prolonged period of time is interpreted to be a minimum of 30 working days, except for maternity purposes.

Substantial Loss of Income means a continuous period of time where the employee will not have otherwise been compensated by ANC due to a medical condition and the exhaustion of all earned sick, annual, holiday, and compensatory leave, and such medical condition is not covered and compensated by Worker's Compensation. This requirement does not apply for maternity purposes.

I. Catastrophic Leave Policy

Arkansas Northeastern College's Catastrophic Leave Policy Committee will be comprised of appointed departmental representatives as follows:

Academic Affairs (two)

Community/Continuing Education/Learning Resources/Off Campus Location (two)

Student Services (two)

Administrative Affairs (one)

II. Record Keeping

The records for the Catastrophic Leave Program will be maintained in the Human Resources Office. Records will reflect the amount of leave donated, date, rate of pay and dollar value at the time of donation, amount of Catastrophic Leave awarded, including name of the recipient, position number, and rate of pay at the time of receipt of donation.

III. Implementation

A series of meetings will be conducted across campus to explain Arkansas Northeastern College's Catastrophic Leave Bank Program. The meetings will be

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 4 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

conducted by the Chief Human Resources Officer and Human Resources Office staff. Each employee eligible to participate in the Catastrophic Leave Bank Program will receive a donation card. Eligible employees wishing to voluntarily donate annual or sick leave to the program may fill out the card, sign, and return to Human Resources Office. (The card will designate the minimum and maximum contribution allowable per employee calendar year.) A series of computer programs will be written that will maintain the Catastrophic Leave Bank records. The records will reflect the amount of leave donated, rate of pay, and dollar value at the time of the donation.

IV. Prohibition of Coercion

It is the policy of Arkansas Northeastern College not to intimidate, threaten, or coerce any employee for the purpose of interfering with any employee's decision to donate, receive, or use annual or sick leave.

V. General Policies

- A. Accrued annual leave and/or sick leave may be donated to the Catastrophic Leave Bank.
- B. Catastrophic Leave with pay may be granted to an employee when such employee is incapacitated for the performance of the employee's duties due to a catastrophic illness or maternity leave.
- C. Eligibility Qualifications
 1. The employee has been employed by Arkansas Northeastern College for more than one year.
 2. An acceptable medical certificate from a licensed healthcare provider who is practicing within the area of specialty related to the medical condition supporting the continued absence is on file. This requirement does not apply for maternity purposes.
 3. The employee has not been disciplined for any leave abuse during the past one year. This requirement does not apply for maternity purposes.
 4. At the onset of illness or injury, the employee must have at least eighty (80) hours of combined sick and annual leave and must have exhausted all leave, unless an exceptional circumstance waiver is granted by the President; This requirement does not apply for maternity purposes.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 5 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

5. The total amount of catastrophic leave granted within a calendar year may not exceed six hundred forty (640) hours, consisting of up to 480 hours of illness or injury and 160 hours of maternity purposes;
 6. An employee shall not be approved for catastrophic leave for maternity purpose unless the employee has provided acceptable proof of birth or placement. For the birth of an employee's biological child, acceptable proof includes a hospital announcement with the mother's name and/or the biological child's name, hospital discharge papers with the mother's name and the biological child's name, or a birth certificate of the biological child. For the placement of an adoptive child in an employee's home, acceptable proof includes formal document from the placement entity with the mother's name and the child's name or legal guardianship papers with the mother's name and the child's name.
- D. Any employee on Catastrophic Leave will continue to accrue leave in accordance with existing state leave policies and will receive normal benefits such as Arkansas Northeastern College contributions to insurance and retirement. Catastrophic Leave will not change an employee's salary increase eligibility date. Any leave earned while an employee is on Catastrophic Leave must, as a condition of voluntary participation in the program, be assigned to the Catastrophic Leave Bank, and any restrictions concerning the maintenance of minimum leave balances shall not apply to such assignment.
- E. Any unused Catastrophic Leave will be returned to the program in the event the employee is terminated, retires, or returns to work prior to the expiration of the previously approved Catastrophic Leave period. An employee may be dismissed if such employee fails to report to work promptly at the expiration of the period of approved Catastrophic Leave. Nothing, however, shall prevent Arkansas Northeastern College from accepting satisfactory reasons provided by the employee in advance of the date the employee is scheduled to return to work, and from granting leave without pay status to an employee prior to and after the expiration of such Catastrophic Leave if, in the view of the Administrative Affairs Committee, such action is warranted.
- F. Accrued leave may only be donated to the Catastrophic Leave Program in eight-hour increments. Catastrophic Leave may be granted in eight-hour increments, in dollar increments, or a combination to coordinate with disability

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 6 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

insurance not to exceed 100 percent of the employee's normal gross pay. Unused hours of awarded Catastrophic Leave will be returned to the Arkansas Northeastern College Catastrophic Leave Bank. No employee shall be allowed to donate leave to Arkansas Northeastern College's program if such donation will reduce that employee's combined accrued sick leave and annual balance to less than 80 hours. No employee may donate more than 40 hours in a calendar year to the Catastrophic Leave Program. The Administrative Affairs Committee reserves the right to make exceptions to the 40-hour rule.

- G. The Catastrophic Leave Bank Program does not create any expectation or promise of continued employment.

VI. Committee Guidelines

The Catastrophic Leave Committee shall meet as needed to review all catastrophic leave requests. The Human Resources Office will be responsible for submitting to the committee only those requests that meet minimum qualifications. The Committee shall utilize the following guidelines to review Catastrophic Leave requests.

- A. No employee shall be eligible for approved Catastrophic Leave in excess of six continuous months (1040 hours) within a three (3) year period unless it can be demonstrated that the employee has been denied disability retirement or Social Security benefits. This requirement does not apply for maternity purposes.
- B. If the illness or injury is that of an employee and is covered by worker's compensation, the compensation based on Catastrophic Leave when combined with the weekly worker's compensation benefit received by the employee shall not exceed the compensation being received by the employee at the onset of the illness or injury.
- C. No employee shall be approved for Catastrophic Leave unless the employee has provided an acceptable medical certificate from a licensed healthcare provider within the area of specialty related to the medical condition supporting the continued absence, setting forth that the employee or a qualified family member is and will continue to be incapacitated from performing the employee's duties due to a catastrophic illness. Information relative to the employee's assigned duties such as functional job descriptions, should be

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE CATASTROPHIC LEAVE BANK PROGRAM SUPPORT STAFF EMPLOYEES	NUMBER 5.18
LEGAL REFERENCE Act 169 OF 1991; Act 44 of 1993; Act 1176 of 1999, Act 182 of 2017	PAGE 7 OF 6
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-02, Rev. 2-25-04, 8-18-04, 8-17-11, 12-13-23, 12- 10-25

made available to the licensed healthcare provider. This requirement does not apply for maternity purposes.

- D. Catastrophic leave, for maternity purposes, may be awarded after the birth of a biological child or placement of an adoptive child and shall not exceed four (4) continuous weeks (160 hours).
- E. In no case shall Catastrophic Leave be granted beyond the date the licensed healthcare provider certifies that the employee is able to return to work.
- F. Catastrophic Leave which would result in a negative balance in ANC's Catastrophic Leave Bank shall not be approved.
- G. Determinations by the Catastrophic Leave Committee shall be reviewed by the President of Arkansas Northeastern College.
- H. Determinations by the Catastrophic Leave Committee shall be reviewed by the Administrative Affairs Committee for information purposes.
- I. The decision of the President shall be final and binding. Nothing shall prevent the President from taking into account the impact on the College's operation in granting or denying Catastrophic Leave or in modifying previously approved Catastrophic Leave if, in the judgement of the President, such approved leave would seriously impact the College's operation, In exceptional circumstances, the President may allow catastrophic leave that does not conform to all applicable policies.
- J. Catastrophic Leave shall not be awarded retroactively.
- K. Applications for Catastrophic Leave shall be reviewed on a first-filed, first-considered basis.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 1 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

I. Annual Leave

All regular full-time classified employees are eligible for annual vacation leave with full pay. Annual vacation leave shall accrue each month in accordance with the following schedule.

Employment	Monthly	Annually
Through 3 years	1 day	12 days
4 through 5 years	1 day, 2 hours	15 days
6 through 12 years	1 day 4 hours	18 days
13 through 20 years	1 day, 6 hours	21 days
Over 20 years	1 day, 7 hours	22.5 days

Accrual rates will change on the first day of the month following eligibility for the next higher accrual rate.

Annual leave accrued during a calendar month is not considered to be earned by an active employee until the last working day of the month, and the leave must be earned before it can be used. Employees will not borrow from anticipated future accruals and may not use annual leave accrued by other employees.

The minimum annual leave amount an employee can use is fifteen (15) minutes.

Any leave in excess of 30 days must be used by December 31 of each year or it will be forfeited by the employee. Employees who are on leave without pay for ten (10) or more cumulative days within a calendar month do not accrue annual leave. Upon termination, resignation, retirement, or other action by which a person ceases to be an active employee, the employee will be paid for all unused annual leave up to a maximum of 30 days. Upon death of an active employee, the amount of unused (and holiday) leave due the employee shall be paid to the employee's estate or authorized beneficiary and will not exceed sixty (60) days of annual leave and holiday leave. Employees transferring between state agencies and/or state-supported institutions of higher education without a break in service shall retain all accumulated leave.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 2 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

Half time permanent employees who work 1,040 hours or more per year will be granted leave time and holiday pay according to a proration of the full-time employee's rate, calculated by dividing the annual number of hours worked by 2,080.

II. Sick Leave

All regular full-time employees accrue sick leave at the rate of one day per month, accrual to 120 days so long as only 120 days are carried over at the end of the calendar year.

Sick leave accrued during a calendar month is not considered to be earned by an active employee until the last working day of the month, and the leave must be earned before it can be used. Employees will not borrow from anticipated future accruals.

The minimum sick leave amount an employee can use is fifteen (15) minutes.

Absences due to sick leave, except in the case of maternity leave, shall be charged in the following order: (1) earned sick leave, (2) earned annual leave, (3) leave without pay.

Employees who are on sick leave for five (5) or more consecutive days must furnish medical certification from an attending physician or Christian Science practitioner listed in the Christian Science Journal.

Sick leave may be used by employees because of illness or for medical, dental, or optical treatment. Sick leave may also be granted to employees due to the death or serious illness of a member of the employee's immediate family. Immediate family means father, mother, sister, brother, spouse, child, grandparents, grandchild, in-laws, or any individual acting as parent or guardian of an employee. The use of sick leave is contingent upon occurrence of one of the events listed above. If the event never occurs, the employee is not entitled to the sick leave benefits.

Requests to use sick leave for medical, dental, or optical examinations, hospital stays, funerals, etc., should be made in advance, unless the hospital stay is the result of an emergency medical condition.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 3 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

Upon retirement or death, any employee, or beneficiary of any employee, may receive compensation for accumulated unused sick leave based on the formula in Arkansas Annotated Code § 21-4-501. In no event shall an employee, or beneficiary, receive an amount that exceeds \$7,500 upon retirement or death of an employee. To receive a retirement payout of sick leave, the employee must meet the early retirement incentive guidelines or age plus years of service equal seventy (70) or more.

Employees absent from work due to temporary occupational injury or illness and who are entitle to Worker's Compensation benefits may utilize accrued sick leave as a supplement to such benefits. The combination of benefits and sick leave pay shall not exceed the employee's normal pay period salary.

III. Bereavement Leave

Any full-time employee may request three days of absence without loss of pay for the death of a member of the immediate family. Immediate family means father, mother, sister, brother, spouse, child, grandparents, grandchild, in-laws, or any individual acting as parent or guardian of an employee. Such requests must be approved by the employee's supervisor and shall be deducted from the employee's accumulated sick leave. Additional bereavement leave, not to exceed three days, may be approved on request.

IV. Leave of Absence Without Pay

In rare cases and for extenuating circumstances, a leave of absence without pay may be granted by the President for specified periods.

V. Court and Jury Leave

Jury leave is authorized without any loss of salary or leave time. Any compensation paid by the court may be retained by the employees.

Court leave is authorized for an employee who is subpoenaed as a witness to give a deposition or testimony in state or federal court, at a hearing, or before anybody with power to issue a subpoena. The employee will not be required to take annual leave if the matter is within the employee's scope of employment. If the matter is outside

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 4 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

the employee's scope of employment, annual leave may be required. The employee should consult the Human Resources Office to determine whether or not annual leave will be charged for the absence.

VI. Military Service Leave

Employees who are members of the National Guard or any reserve military branch of the US Armed Forces will be granted leave at the rate of 15 working days per calendar year, plus necessary travel time for annual training purposes. Up to fifteen (15) unused military leave days may be carried over to the succeeding year for a maximum of thirty (30) military leave days for military training purposes that calendar year. Employees requesting military leave must provide written or oral notification prior to going on duty, unless precluded by military necessity.

VII. Organ Donor Leave

An employee is entitled to leave with pay for up to thirty (30) days per calendar year to serve as a human organ donor. In addition, an employee is entitled to leave with pay for up to seven (7) days per calendar year to serve as a bone marrow donor. To qualify for either leave, written requests from both the employee and the medical physician performing the transplantation are required. Following the transplantation, written verification of fact must be provided by the same physician.

VIII. Children's Education Leave

An employee is entitled to eight (8) total hours of leave during any one (1) calendar year to attend or assist with the educational activities of a child. The child may be enrolled in pre-kindergarten through grade 12 and related to the employee as a: natural child, adopted child, stepchild, foster child, grandchild, or ward of the employee or any other legal capacity where the employee is acting as parent for the child. The educational activity is any school sponsored activity including: parent-teacher conference, participation in school-sponsored tutoring or volunteer program, field trip, classroom program, school committee meeting, or academic competition assisting with athletic, music, or theater programs.

Unused Children's Education Leave may not be carried over to the next calendar year and is not compensable to the employee at retirement.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 5 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

- IX. Family and Medical Leave (FMLA)
The Family and Medical Leave Act of 1993 (Title 29, Code of Federal Regulations Part 835) entitles “eligible” employees to a total of 12 work weeks of leave during any 12-month period for one of the following reasons:
- A. The birth and care of a newborn child of the employee;
 - B. The placement with the employee of a son or daughter for adoption or foster care;
 - C. To care for a spouse, son, daughter, or parent with a serious health condition; and
 - D. To take medical leave when the employee is unable to work because of a serious health condition, or
 - E. For qualifying exigencies arising out of the fact that the employee’s spouse, son, daughter, or parent is on active duty or called to active duty status as a member of the National Guard or Reserves in support of a contingency operation.

A covered employer must also grant an eligible employee who is a spouse, son, daughter, parent, or next of kin of a current member of the Armed Forces, including a member of the National Guard or Reserves, with a serious injury or illness up to a total of 26 work weeks of unpaid leave during a “single 12-month period” to care for the service member.

The 12-month period used by the College for determining eligibility is the calendar year. In the case of birth or adoption, eligibility for FMLA leave shall expire at the end of the 12-month period beginning of the date of a child’s birth or placement. However, leave used for this purpose shall also be calculated on a calendar year basis.

- X. Compensatory
In lieu of overtime pay, compensatory time is earned for work performed in excess of 40 hours in the work week. Compensatory time may not be earned in less than 15 minute increments.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 6 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

Except for security officers, whose positions receive partial overtime exemptions, all employees performing qualifying nonexempt work (authorized by the employees' supervisor) within a work week will accrue compensatory time at the rate of one and one-half times the number of hours worked in 40 hours. Leave time and holiday time are not considered when computing overtime.

Security officers are not on a regularly scheduled 40 hour work week, but have pre-established work periods of 28 days in length. For these employees, no compensatory time will be earned until the number of hours worked during a 28 day period exceeds 171 hours.

XI. Wellness Leave

All permanent, support staff employees are eligible for leave with pay each calendar year to have a preventative exam as part of the WellYou Program. Wellness leave is noncumulative and requires prior approval on the Request for Leave Form by the Dean/Chairperson/Director/Coordinator and the appropriate Vice President. Hours of wellness leave are determined pro rata based on employment status as shown below:

Full-time employees – 8 hours per calendar year

XII. Exhaustion of Leave Policy

An employee that has exhausted his/her leave balances, including but not limited to personal, annual, sick, or formally approved compensatory time will immediately be placed on a 30 day probation period upon the first occurrence of absence without approved leave.

The employee may request leave under the provisions of the Family and Medical Leave Act (FMLA) and/or Arkansas Northeastern College's Catastrophic Leave Policy, if applicable.

- Preferably, the FMLA form will be completed 30 days before the employee's leave is exhausted, but must be completed immediately upon returning to the workplace by the affected employee.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 7 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

- The Chief Human Resource Officer will either approve the FMLA request, thus permitting the employee continued employment at ANC, or deny the request.
- This notification will take place within 48 hours of the request.

If the FMLA request is denied, a committee consisting of the Chief Human Resource Officer, a faculty representative, and a classified staff representative will either place the employee on disciplinary probation or terminate the employee.

- The committee will be formed on an as-needed basis with the Chief Human Resource Officer selecting the members of the committee.
- Notification of the decision of the committee will take place within 7 days.

Any request for Catastrophic Leave will be reviewed by the Catastrophic Leave Committee and be approved or denied by the Administrative Leave Committee.

- Notification of the decision of the Catastrophic Leave Committee and the Administrative Affairs Committee will take place within 7 days of the request.

Finally, a Leave of Absence Without Pay (LWOP) may be requested from the President.

- Notification of the President's decision will take place within 7 days of the request.

Any employee that has exhausted all sources of leave as described from work without appropriate leave use or obtaining FMLA leave, LWOP, or Catastrophic Leave will be terminated at the end of the 30 day probation period. This includes

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE LEAVE – SUPPORT STAFF	NUMBER 5.19
LEGAL REFERENCE	PAGE 8 OF 8
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 4-12-89, 6-14-89, 2-11-98, 12-8-99, 8-18-04, 8-17-11, 12-14-11, 10-16-24

employees that have failed to accumulate additional leave while placed on a disciplinary probation as described above.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE MATERNITY LEAVE: GUIDELINES	NUMBER 5.20
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-14-87, 2-11-98, 8-18-04, 8-17-11

- L. Request for leave and leave procedures will be provided the employee, at the employee's request, by the Human Resources Office or Chief Human Resources Officer.
- II. The employee should submit a request for maternity leave to her immediate supervisor two months in advance of due date. The supervisor should then route the request to the Human Resources Office.
- III. Accompanying an employee's advance request for maternity leave should be a physician's written statement specifying how much estimated time off an employee will need after the birth.
- IV. Because an employee, for maternity reasons, may elect the type of leave requested (sick, annual, leave without pay, FMLA, in any order or combination), the leave request must state the type(s) and amount(s) chosen. Leave of absence without pay must be approved by the President.
- V. Approximately two weeks prior to the expiration of the physician's specified period of time off, the employee will be sent a confirmation letter stating the date for reporting back to work. If the date must be changed, another physician's written statement will be required.

If the employee elects not to return, she will be sent the necessary termination papers for completion.

- VI. Maternity leave is to be treated as any other leave for sickness or disability. However, the employee may elect to take a leave of absence without pay without exhausting accumulated annual and sick leave.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE POSITION VACANCIES	NUMBER 5.23
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-10-82, 2-11-98, 8-18-04, 8-17-11

Requests for the filling of a vacancy in a Board-authorized position must be made in writing to the President. No position may be filled unless first approved by the President.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TERMINATION FOR CAUSE – CLASSIFIED STAFF	NUMBER 5.25
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 4/17/19

Gross Misconduct is behavior which threatens the safe operation of the College or the health and safety of others. No list of specific misbehavior can contain all types of potential misconduct which may occur. The following are examples of behavior which may fall under the umbrella of Gross Misconduct:

- Insubordination – refusing to follow the directives or maintain the standards of work required by the supervisor when such directives or standards are legal, reasonable, and included within the employee’s contractual or official job responsibilities. The termination for cause policy shall be implemented for insubordination only when normal procedures as outlined in existing policies (e.g. conferences, grievances, written warnings) have been exhausted or proven ineffective for curbing negative behavior.
- Actions which endanger the health and safety of others.
- Damaging College or Foundation property by a willful or reckless act.
- Conviction of a felony which suggests a danger to others – e.g. physical or sexual assault, terroristic threatening, or other dangerous felonies not covered under other college policies.
- Threatening or harassing language or behavior toward another employee or student.

Gross Misconduct reflects a truly severe offense and, as such, may lead to immediate termination without warning or counseling.

Procedures and conditions for the termination of classified employees are governed by ANC Rule 5.9. Classified employees who are terminated are afforded due process through the Human Relations Committee, in accordance with ANC Rule 5.13. If possible, these processes should be the preferred option for handling misconduct and/or unsatisfactory work performance on the part of the ANC classified staff, faculty, and administrative staff. However, circumstances may arise in which, to curb extremely disruptive behavior or to preserve the safety of college employees, property, or students, drastic and immediate action must be taken.

Employees dismissed for gross misconduct shall retain rights to the grievance procedures specified above.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EXERCISE OF FREE SPEECH	NUMBER 6.69
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-19-20

The exercise of First Amendment rights on the campus of Arkansas Northeastern College (ANC) is a critical component of the education experience for students and requires that it ensure free, robust, and uninhibited debate and deliberation by all members of the ANC community.

ANC will strive to ensure the fullest degree of intellectual and academic freedom and free expression. As noted in Act 184 of the 2019 Arkansas General Assembly, it is not the proper role of any state-supported institutions of higher education to shield individuals from speech that is protected by the First Amendment to the United States Constitution. This includes without limitation ideas and opinions that individuals may find unwelcome, uncollegial, disagreeable, or even deeply offensive.

Any member of the ANC community who wants to engage in noncommercial expressive activity in an outdoor area of campus shall be permitted to do so freely provided that the individual's conduct:

Is not unlawful and

Does not materially and substantially disrupt the functioning of ANC.

Any activity that audibly interferes with any classroom or laboratory teaching, or other sanctioned College event or activity will be considered a material and substantial disruption of the functioning of ANC.

Protected expressive activities include:

- I. Communicating through any lawful verbal, written, or electronic means;
- II. Participating in peaceful assembly;
- III. Protesting;
- IV. Making speeches, including without limitation those of guest speakers;
- V. Distributing literature;
- VI. Making comments to the media;
- VII. Carrying signs; and
- VIII. Circulating petitions

An outdoor area of the campus of ANC shall be deemed a public forum for members of the campus community. These would include grassy areas, walkways, or similar common areas.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE EXERCISE OF FREE SPEECH	NUMBER 6.69
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-19-20

Under no circumstances will any activity be allowed that blocks or otherwise impedes normal access, egress, entry, or exit to/from/of any College walkway or doorway.

A member of the campus community includes current students, administrators, faculty and staff.

ANC will not allow an individual to engage in conduct that materially and substantially disrupts another person's expressive activity if the other person's activity is occurring in an area of campus that is reserved for an activity under the exclusive use or control of a particular group.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TRAVEL REGULATIONS	NUMBER 7.25
LEGAL REFERENCE	PAGE 1 OF 4
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

Arkansas Northeastern College recognizes that travel by various staff members is necessary and/or desirable in order that the College fulfills its mission to citizens of Mississippi County. Travel policies and procedures must be followed to assure compliance with state and College regulations.

- I. All travel, for which reimbursement by the College is expected, must be approved at least one College working day prior to the proposed travel. Authorization to travel and for reimbursement must be obtained from the appropriate Cabinet Member or the President of the College.
- II. No employees shall receive compensation for travel to and from work, except certain part-time instructors living out of town and having prior, special authorization.
- III. If, because of a second assignment, during a 24-hour period (12 midnight-12 midnight), a staff member travels in excess of the normal round-trip mileage for the first assignment, reimbursement (prior authorization is required) may be paid for the extra travel created by the second assignment. This does not apply when both assignments are within the city limits.
- IV. Reimbursement for travel in private vehicles is computed at the current state approved mileage rate by using the standard mileage table. Vicinity travel mileage may be claimed within the location visited if substantial and necessary.
- V. Travel reimbursement limitations may be placed into effect at any time by the College and may include commenced travel.
- VI. Arkansas Northeastern College abides by the following Arkansas regulations governing travel:
 - A. Fines assessed for traffic violations will be the responsibility of the traveler and will not be reimbursed by the College.
 - B. The maximum daily allowance for meals and lodging is determined by the state and published annually in the *ANC Travel Regulations Handbook* available from the Chief Fiscal Officer.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TRAVEL REGULATIONS	NUMBER 7.25
LEGAL REFERENCE	PAGE 2 OF 4
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

- C. Reimbursement is to be claimed for actual expenses for meals and lodging within the limitations set by law and the maximum must not be claimed unless actual expenditures for such purposes were actually made. The College does not provide a ‘per diem,” only reimbursement for actual expenses up to the maximum allowance.
- D. The maximum for lodging may be exceeded only if there is a special written authorization in letter form signed by the Chief Fiscal Officer clearly stating reasons therefore and shall be executed in behalf of each individual traveler for each special authorized occasion. The usual situation which is allowed for exception is for lodging in the conference hotel if it exceeds the daily maximum allowance.
- E. Travel expenses incurred in border areas, such as Memphis or Texarkana, are defined as in-state travel.
- F. When privately-owned motor vehicles are used for authorized travel on College business, the owner can claim reimbursement at the current state approved mileage rate. The maximum mileage allowed will be determined by the shortest major highway route. Any vicinity mileage claimed should be listed separately from the “to and from” mileage on the TR-1 form. If more than one traveler is transported in the same vehicle, only the owner can claim mileage reimbursement. The College assumes no responsibility for any maintenance, operation cost, accidents, fines, or tolls incurred by the owner of the vehicle while on official business for the State.
- G. Travel expenses incurred in border areas, such as Memphis or Texarkana, are defined as in-state travel.
- H. If a privately-owned airplane is used for official business of the College, the rate for reimbursement will be the current state approved nautical mileage rate with mileage to be determined by the shortest major highway route.
- I. For out-of-state travel, reimbursement shall be the lesser of coach air fare or the current state approved mileage rate when driven.
- J. College oil company credit cards may be used only for gasoline, oil, and emergency repairs to College vehicles. They may not be used to pay for meals, lodging, or commercial carriers.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE TRAVEL REGULATIONS	NUMBER 7.25
LEGAL REFERENCE	PAGE 3 OF 4
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

- K. Reimbursement will be allowed to pay for necessary local telephone calls on the traveler's room bill, registration fees for workshops, convention, etc., and taxi fares or shuttle service if traveler presents with a TR-1. No reimbursement will be allowed to any traveler for entertainment, tips, valet services, flowers, laundry and the like.
- L. For out-of-state travel when traveling by either a privately-owned automobile or a College-owned vehicle, reimbursement for meals and lodging shall be limited to actual expenditures within state determined limitations, provided 375 miles are traveled per day. For example a trip covering 1,125 miles allows the traveler to be reimbursed a maximum of three days while traveling to his/her destination.
- M. All claims for travel must be completed by each traveler, and payment will be made only to the traveler who incurred the expense, even though another traveler may have actually pad for the item. A good example involves two College employees sharing a room. Even though one person may have paid the entire amount, it is mandatory that each person obtain a detailed hotel receipt in his/her individual name with a zero balance on the receipt indicating that the hotel has been paid. Each person must claim his/her share on his/her TR-1.
- N. All necessary forms and copies must be properly completed or the processing of travel approval or reimbursements will be delayed.
- O. The traveler will be held directly responsible for abuse of any of these provisions.

Any questions concerning travel policy should be directed to the Chief Fiscal Officer.

- VII. The institution is restricted by the State of Arkansas rules and regulations regarding reimbursement of expenses incurred during travel on College business. Detailed guidelines are described in the *ANC Travel Regulations Handbook*.
- VIII. Authorized representatives of the College may be permitted to travel in response to and on behalf of the College's business in accordance with pertinent laws and regulations. Care shall be exercised that necessary, and approved, travel shall be performed in the most economical and appropriate manner, and pooling of transportation for a number of individuals with similar destinations is required.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE ELECTRONIC MAIL POLICY	NUMBER 7.32
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-17-11

Electronic mail (email) is a tool provided by the College to complement traditional methods of communication and to improve education and administrative efficiency.

Users have the responsibility to use this resource for the above stated purposed in an efficient, effective, ethical, and lawful manner. A user indicated agreement to be bound by this policy by using the College email system.

I. Purpose of the Policy

The purpose of this policy is to ensure the proper use of Arkansas Northeastern College electronic mail (email) system by its students, faculty and staff.

II. Violations

Violations of the policy may result in restriction of access to all College information technology resources, including the email system and may result in other appropriate disciplinary action, up to and including dismissal to the extent appropriate under other College policies.

III. Ownership of Electronic Mail Data

The College owns all email accounts and data transmitted using email capabilities. While incidental personal use of email is acceptable, conducting business for profit using College resources is forbidden.

IV. Expectation of Privacy

While the College attempts to keep email messages secure, privacy is not guaranteed, and users should have no general expectation of privacy in email messages sent though the College email system.

A. College Access to Electronic Mail

Under certain circumstances, it may be necessary for the information technology staff or other appropriate College officials to access email files to maintain the system, to investigate security or abuse incidents or violations of this or other College policies. Such access will be on an "as needed" basis. Any email accessed will be disclosed only to those individuals with a "need-to-know" or as required by law.

B. Public Access to Electronic Mail

All emails, accounts, and data transmitted using the College email System are subject to Freedom of Information (FOI) requests at any time.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE FIREARMS	NUMBER 7.34
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 6-19-13, 8-20-18

Act 562 of 2017 provides for the carrying of a firearm in publicly owned buildings or facilities. This policy, pursuant to Act 562, provides that an individual who is a licensed concealed carry permit holder and who has completed an additional training course approved by the Director of the Department of the Arkansas State Police will be permitted to carry a concealed handgun on the Arkansas Northeastern College campus.

The term “campus” includes but is not limited to, college buildings, grounds, parking areas or any other facility owned, leased, or operated by the College.

For purposes of this policy, shotguns, rifles, or other long guns remain prohibited from the Arkansas Northeastern College campus. This policy in accordance with Act 562 only applies to handguns.

Violators who do not have a concealed carry permit and have not taken the required additional training may be subject to criminal prosecution and/or referral for College disciplinary action and having their firearm confiscated.

TITLE ELECTRONIC MESSAGE BOARD POLICY	NUMBER 7.35
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 2-19-14

Arkansas Northeastern College's electronic message board/entrance sign is viewed by both the campus community and the general public, making it highly visible and representative of the College. Therefore, it will be operated in a manner that promotes a positive College image and supports Arkansas Northeastern College's mission of education and public service.

Messages considered for the board will include College-sponsored art, music, theatre events, and sports activities; important academic calendar dates (such as registration deadlines); holidays and campus closings; announcements of community interest that comply with the Electronic Message Board policy as approved by ANC.

Requests for messages to be posted on the sign should be submitted for approval at least two weeks in advance by contacting the Office of Marketing and Development (ext. 1120), which will configure the text to accommodate electronic and mechanical limitations. Messages may also be edited for brevity, clarity, and compliance with medium specifications.

Additional Regulations:

- All messages must be approved by the Office of Marketing and Development which reserves the right to deny posting of messages deemed inappropriate. This includes messages not specified in the Electronic Message Board Policy.
- Messages relating to non-profit community events in Mississippi County will not be considered unless the event has a demonstrated history of attracting in excess of one thousand (1,000) attendees. Messages relating to parades and non-college sporting events will not be considered. Because Arkansas Northeastern College is a State Agency, no announcements regarding religious-oriented events can be considered.
- Messages will be posted for no more than seven (7) consecutive days.
- No more than one message per event will be posted.
- Please note that, in unusual circumstances, requests with a shorter lead time than two weeks or posting period longer than seven (7) consecutive days will be considered and must be approved by the appropriate department or vice president.
- Emergency announcements may be posted as needed.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE USE OF COLLEGE-OWNED FACILITIES	NUMBER 8.1
LEGAL REFERENCE	PAGE 1 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-95, 8-10-94, 4-12-95, 2-11-98, 8-18-04, 8-18-10, 8-17-11, 12-14-22

Organizations may rent Arkansas Northeastern College facilities for events that provide or promote educational or cultural enrichment or enhance the business climate for the greater good of the service region. Individuals, groups, or organizations may also may rent College facilities for private gatherings that do not conflict with the mission of Arkansas Northeastern College.

PRIORITY USAGE	
ACTIVITY GROUP I Have priority usage at no cost	ANC sponsored events, including ANC academic-related activities; ANC community education courses, programs, and services; and ANC student organizations
ACTIVITY GROUP II See rates	Nonprofit, civic, service, or charitable organizations, and K-12 public and private school groups
ACTIVITY GROUP III See rates	Activities or events not sponsored by ANC that fall outside the definition of Activity Group II, including approved private gatherings

- I. The Chief Fiscal Officer or designee will be responsible for approving all non-classroom facility usage requests. Upon review of a facility usage request the College reserves the right to accept or reject any requested use of facilities and to impose additional requirements not listed in this rule. The judgment of the Chief Fiscal Officer concerning usage and rule interpretation will be final.
- II. Under no circumstances will College facilities be utilized for partisan political purposes.
- III. Usage requests by Activity Groups II and III must occur by way of a signed Facility Usage Request Form executed at least 72 hours prior to the rental event. Activity Group I events may be approved verbally by the Chief Fiscal Officer or designee.
- IV. Full payment of facility usage fees must occur prior to the rental event, without exception. All rates are firm and non-negotiable.
- V. Because a deposit is not required, proper advance notice of cancellation is mandatory. If a rental is not canceled 48 or more hours in advance, the entire rental amount will be due.
- VI. Events will be scheduled on a first requested/first reserved basis. Events may not be booked more than six months in advance, with the exception of ANC sponsored events.
- VII. The College reserves the right to restrict the use or rental of grounds, facilities, equipment, and/or services at any time that the College so determines. Normal operating hours are Monday through Thursday, 7:30 a.m. – 9:30 p.m.; Friday, 7:30

ARKANSAS NORTHEASTERN COLLEGE**RULE**

TITLE USE OF COLLEGE-OWNED FACILITIES	NUMBER 8.1
LEGAL REFERENCE	PAGE 2 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-95, 8-10-94, 4-12-95, 2-11-98, 8-18-04, 8-18-10, 8-17-11, 12-14-22

a.m. – 4:30 p.m.; and Weekends, variable. The College is generally closed for the following: Independence Day Weekend, Labor Day Weekend, Thanksgiving Weekend, Christmas Eve through New Year's Day, Martin Luther King, Jr. Day, President's Day, Good Friday Weekend, and Memorial Day Weekend.

- VIII. The College's catering service (the ANC Sunshine Grille) shall be utilized when catering services are planned for an event, reserving the right of first refusal. College catering services must be arranged at least one week in advance of the rental event.
- IX. The Director of Physical Plant & Grounds maintains a menu of approved configurations for room setup. All requests for setup assistance must conform to one of the approved configurations.
- X. Non-ANC sponsored users conducting evening or weekend events will require the services of ANC Public Safety personnel during the rental event. Users will be charged \$20 per hour/per officer, three-hour minimum, for such services, payable in advance.
- XI. For events sponsored by Activity Groups II and III, a representative of the sponsoring organization who signed the Facility Usage Form must be in attendance and in charge at the rental event at all times.
- XII. Youth or children's groups must be supervised at all times by responsible adults provided by the sponsoring organization, including ANC sponsored events.
- XIII. Smoking and alcohol are not permitted on the grounds of Arkansas Northeastern College.
- XIV. No cooking is permitted in the Governors Ballroom kitchen, used only for catering. Dishes and silverware in the kitchen are not available for use without the express written permission of the Chief Fiscal Officer or designee.
- XV. No facility user is permitted to affix tape to any college walls; all decorations must be free-standing.
- XVI. Equipment may not be brought onto College grounds and connected to the electrical service without the prior consent of Director of Physical Plant & Grounds or designee.
- XVII. No signs or other publicity materials will be permitted to be posted anywhere on campus without the specific approval of the designee responsible for postings. Prompt removal of any permitted signs or postings following the event will be the responsibility of the user. The College's name and/or logo shall not appear in any advertising or promotional materials without specific approval of the Associate Vice President for Development and College Relations except to

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE USE OF COLLEGE-OWNED FACILITIES	NUMBER 8.1
LEGAL REFERENCE	PAGE 3 OF 3
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 10-9-95, 8-10-94, 4-12-95, 2-11-98, 8-18-04, 8-18-10, 8-17-11, 12-14-22

indicate the location of the event.

- XVIII. First aid services, if needed, are the responsibility of the user.
- XIX. Any authorized officer, employee, or agent of the College may eject or cause to be ejected from the College any person(s) causing a disturbance or interfering with the peaceful use of College facilities.
- XX. All facility users must vacate the premises by 10:00 p.m. unless otherwise permitted in advance in writing by the Chief Fiscal Officer or designee.
- XXI. The College reserves the right to require any user of College buildings, grounds, facilities, or services to reimburse the College for any destruction, damage, defacement, or loss (including extraordinary cleaning expenses) to College buildings, grounds, facilities, or services resulting from user's activities in such buildings, grounds, facilities, or services.

Specified Rental Rates: Activity Group II	
A-Concourse Conference Room	\$125 per day
Adams/Vines Recital Hall	\$500 per day
Adams/Vines Gallery	\$125 per day
Briggs/Sebaugh Wellness Center	\$1,000 per day
Governors Ballroom	\$500 per day
Lecture Hall	\$250 per day
Other Facilities	\$125 - \$250 per day
Specified Rental Rates: Activity Group II	
A-Concourse Conference Room	\$250 per day
Adams/Vines Recital Hall	\$750 per day
Adams/Vines Gallery	\$250 per day
Briggs/Sebaugh Wellness Center	\$2,000 per day
Governors Ballroom	\$750 per day
Lecture Hall	\$500 per day
Other Facilities	\$25 - \$250 per day

ARKANSAS NORTHEASTERN COLLEGE**RULE**

TITLE USE OF COLLEGE VEHICLES	NUMBER 8.3
LEGAL REFERENCE	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

College-owned vehicles may not be borrowed, leased, or rented from the College and may only be used for activities relative to College functions, course offerings, or business. College vehicle utilization may be authorized only by a Division Dean/Chairperson/Director/Coordinator, or Cabinet member, subject to availability and priority need.

I. Use of Vehicles Assigned to Physical Plant

The Physical Plant division will establish internal control procedures for all assigned vehicles that are normally used in its daily operation. These vehicles may be used by other divisions/departments at the discretion of the Director of Physical Plant. Individuals desiring to use any of these vehicles should follow the procedure listed below.

- A. Submit a vehicle request form to the Physical Plant a minimum of two working days before the planned trip.
- B. Arrange with the Physical Plant Department secretary to pick up the vehicle key during working hours.
- C. If the vehicle is to be returned to the campus during non-duty hours, the vehicle will be parked adjacent to the vehicle assigned parking area and the key turned in to Security.

II. Reporting of Accidents

The vehicle operator is responsible for compliance with this procedure and is solely and individually liable for traffic citations.

- A. Whenever a College vehicle is involved in an accident, irrespective of cause, severity, or fault, the driver will contact the appropriate law enforcement agency as soon as possible. Personal injuries are obviously more important and will be taken care of before reporting to the proper authority.
- B. The vehicle operator will report the details of the accident to the Chief Fiscal Officer as soon as possible and will then notify his/her immediate supervisor during working hours.
- C. The vehicle operator will assist in filling out an accident report with a copy to the Director of Physical Plant.
- D. The Chief Fiscal Officer is responsible for processing claims and filing required accident reports with the insurance company.

**ARKANSAS NORTHEASTERN COLLEGE
RULE**

TITLE USE OF COLLEGE VEHICLES	NUMBER 8.3
LEGAL REFERENCE	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

III. Vehicle Maintenance/Repair

The Physical Plant Division is responsible for maintenance/repair of all College vehicles including preventive maintenance on a regularly scheduled basis.

- A. Maintenance logs will be kept on all College vehicles which will indicate when scheduled maintenance, minor repairs, and tune-ups are required.
- B. The Director of the Physical Plant will be notified whenever maintenance/repair is required. The Physical Plant Division will maintain, repair, or arrange for contract services to maintain and repair.

IV. The Physical Plant Division will provide vehicle servicing on a regularly scheduled basis. Users will be notified whenever a change in the schedule occurs.

ARKANSAS NORTHEASTERN COLLEGE

RULE

TITLE PARKING AND TRAFFIC REGULATIONS	NUMBER 8.5
LEGAL REFERENCE Act 328 of 1967, ACTS of Arkansas	PAGE 1 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-13-86, 8-10-94, 2-11-98, 8-18-04, 8-17-11

In accordance with Act 328 of 1967, Acts of Arkansas, the Board of Trustees of Arkansas Northeastern College established the following rules and regulations for the operation of parking of motor vehicles on the main campus of Arkansas Northeastern College, which are binding on all members of the faculty, staff, student body, and others using the lands and streets owned or controlled by the College.

Parking

Any motor vehicle operated or parked at the main campus by faculty, staff, College students or visitors, in violation of Arkansas motor vehicle statutes or these ANC regulations is subject to being referred to the appropriate authorities, ticketed, and/or towed at the owners' expense and without College liability for any resulting damages.

The College assumes no responsibility or liability for loss of or damage to private property. Vehicles should have valuables removed and be locked.

Parking Areas – Designations

All parking lots are open parking except for those spaces reserved (designated for the handicapped and those non-parking, traffic control spaces so marked). Vehicles may not park within the above designated spaces nor in spaces designated for visitors.

Unauthorized vehicles in these spaces will be issued violation tickets and/or removed at owners' expense.

Traffic

All motor vehicles are to be operated in a safe, courteous manner at all times. The campus speed must not exceed 15 mph and pedestrians have the right-of-way at all crosswalks.

Signage will be either in the form of raised signs on metal standards or painted signs on the campus pavement.

Administrative Charges for Traffic and Parking Violations

(In addition to the fee for the vehicle license trace)

- | | |
|---|-------------------|
| 1. Reckless driving (Arkansas statutes) | Local Authorities |
| 2. Speeding | Local Authorities |
| 3. Unauthorized parking in a disabled area | Local Authorities |
| 4. Safety hazard (fire lane, sidewalk, fire hydrant) | \$15 |
| 5. Parking in handicapped spaces or other unauthorized area | \$10 |
| 6. Parking on grass or lawn area | \$10 |
| 7. Disregard of barricades | \$10 |
| 8. Parking where prohibited by sign | \$ 5 |

ARKANSAS NORTHEASTERN COLLEGE**RULE**

TITLE PARKING AND TRAFFIC REGULATIONS	NUMBER 8.5
LEGAL REFERENCE Act 328 of 1967, ACTS of Arkansas	PAGE 2 OF 2
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-13-86, 8-10-94, 2-11-98, 8-18-04, 8-17-11

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| 9. Parking over curb | \$5 |
| 10. Parking on crosswalk | \$5 |
| 11. Parking where prohibited by yellow lines or curb | \$5 |
| 12. Blocking another vehicle | \$5 |
| 13. Improper parking (disregard of stall lines) | \$5 |
| 14. Parking in any area not designated for parking | \$5 |

The Director of Physical Plant, his designated security assistants, and members of the President's Cabinet are authorized security representatives of the institution as empowered by Act 328.

Administrative charges assigned to any student or employee of the College are to be paid to the Business Office where such administrative charges will be deposited in the appropriate auxiliary account. Collections are to be primarily employed for the upkeep of the parking lots and companion grounds.

Appeals to administrative charges are the jurisdiction of the Administrative Affairs Appeals Committee and/or the Chief Fiscal Officer.

**ARKANSAS NORTHEASTERN COLLEGE
RULE**

TITLE LOAN OF COLLEGE PROPERTY	NUMBER 8.7
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 2-11-98, 8-18-04, 8-17-11

Equipment or physical property belonging to Arkansas Northeastern College must be checked out and properly authorized.

Faculty, staff, and students must check out equipment through the appropriate Vice President or Dean/Chairperson/Director/Coordinator for use on or off campus.

Community groups using College property must complete a Property Loan Request and, if approved by a Cabinet Member, a possession voucher to be kept on file in the Business Office.

Reimbursement to the College

Any individual or group who is loaned temporary use of College property will be required to reimburse the College for any loss or damage to the property borrowed. Amount to be reimbursed will be determined by the Chief Fiscal Officer.

**ARKANSAS NORTHEASTERN COLLEGE
RULE**

TITLE DISPOSAL OF COLLEGE PROPERTY	NUMBER 8.9
LEGAL REFERENCE	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-10-88, 6-10-92, 2-11-98, 8-18-04, 8-17-11

The College must follow certain restrictive procedures and guidelines for disposal of all property from inventory as mandated by the State. Inventory release forms are processed by the Business Office according to the State Accounting Procedures Manual. Any equipment or property that is to be sold, or that has been lost, stolen, or destroyed, should be reported to that office.

**ARKANSAS NORTHEASTERN COLLEGE
RULE**

LEGAL REFERENCE Act 103 of 1973 General Assembly	PAGE 1 OF 1
APPROVED BY THE DISTRICT BOARD OF TRUSTEES	DATE 8-13-75, 12-10-86, 12-10-97, 8-18-04, 8-17-11

In compliance with Act 734 of the 87th General Assembly of the State of Arkansas, the following designates Arkansas Northeastern College as a smoke-free campus effective June 1, 2010.

- I. Smoking is not permitted in any College building or on any college grounds. This prohibition pertains to any buildings or grounds that are owned or operated by the College.
- II. Any person who violates the smoking prohibition is subject to the fines established by the Clean Air on Campus Act of 2009 [not less than one hundred dollars (\$100) and no more than five hundred dollars (\$500)].